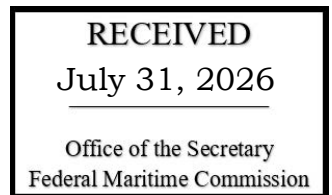


**BEFORE THE
FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**



DOCKET NO. 26-11

THE INDIA CONNECTION LLC

COMPLAINANT,

v.

CMA CGM (AMERICA) LLC

RESPONDENT NO. 1,

PRIDEL PRIVATE LIMITED

RESPONDENT NO. 2.

EAGLE MARITIME OF AMERICA INC.

RESPONDENT NO. 3

VERIFIED COMPLAINT

Complainant **"The India Connection"** ("**Complainant**" or "**The India Connection**"), appearing *pro-se* through its duly authorized representative, respectfully files this Verified Complaint against Respondent No. 1, **CMA CGM (America) LLC** ("CMA CGM"); Respondent No. 2, **Pridel Private Limited** ("Pridel") and **Eagle Maritime of America Inc**, Respondent No. 3 (hereinafter collectively referred to as the "Respondents"), pursuant to 46 U.S.C. § 41301, seeking reparations and other appropriate relief for the

injuries and losses sustained by the Complainant as a direct consequence of the Respondent's unjust and unreasonable practices relating to the assessment, billing and collection of detention charges in connection with the transportation of the Complainant's cargo, in violation of the Shipping Act of 1984, as amended from time to time, including but not limited to 46 U.S.C. §§ 41102(c) and 41104(a)(14), read with 46 C.F.R. Part 541 and 46 C.F.R. § 545.5, and in support thereof respectfully states as follows:

I. COMPLAINANT

1. The "Complainant", India Connection LLC (hereinafter referred to as the "**Complainant**" or "**India Connection**"), is a Limited Liability Company duly organized, validly existing and in good standing under the laws of the State of California, United States of America (**Exhibit-B Pg. 52**), having its headquarters and principal place of business at 370 De Haro St Unit A1, San Francisco, California 94103, United States of America (USA).
2. The present Verified Complaint is being instituted and prosecuted by the Complainant **pro-se**, through its duly authorized representative, **Mr. Sanjeev Khokha, (Exhibit-A Pg. 48)** who is the Directors (Operations, Asia) and is duly competent to institute, sign, verify, file and prosecute the present proceedings before the Federal Maritime Commission (FMC) on behalf of the Complainant.

II. RESPONDENTS

3. The 'Respondent No. 1', **CMA CGM (America) LLC** (hereinafter referred to as "**Respondent No. 1**" or "**CMA CGM**"), is a Limited Liability Company (LLC) duly organized and existing under the laws of the United States of

America, having its headquarters at 5701 Lake Wright Drive, Norfolk, Virginia 23502, United States of America (USA) [Email: usa.disputes@usa.cma-cgm.com], and is a shipping line engaged in the business of providing international ocean transportation services within the foreign commerce of the United States. Respondent No. 1 is the United States operating entity of the CMA CGM Group and, at all times material to the present Complaint, acted as the Vessel Ocean Common Carrier (VOCC) responsible for the ocean carriage of the Complainant's cargo and for the assessment, billing and demand of the detention charges forming the subject matter of the present proceedings.

4. As such Respondent No. 1, at all times material to this Complaint, was and continues to be a "common carrier" within the meaning of 46 U.S.C. § 40102(7) and is subject to the provisions of the Shipping Act of 1984, as amended from time to time, and the regulatory jurisdiction of the Federal Maritime Commission (FMC), including but not limited to the provisions contained in 46 U.S.C. §§ 41102(c) and 41104(a)(14) and the regulations framed thereunder.
5. The 'Respondent No. 2', **Pridel Private Limited** (doing business under the name and style "**Pridel Logistics**") (hereinafter referred to as "**Respondent No. 2**" or "**Pridel**"), is a company duly incorporated under the laws of India, having its registered office at 218-A, Sant Nagar, East of Kailash, New Delhi-110065, India and corporate office at 7th Floor, Tower III, at Plot 2B, Sector - 126, Noida, Uttar Pradesh-201303, India; [Email: pankajmishra@pridel.com; milan@pridel.com] and is engaged, *inter-alia*,

in the business of providing international freight forwarding, logistics and Non-Vessel Operating Common Carrier ("NVOCC") services and has issued the relevant House Bill of Lading (HBL) governing the contractual relationship with the Complainant and facilitating the transportation of the Complainant's cargo through Respondent No. 1.

6. The Respondent No. 2, at all times material to the present Complaint, was and continues to be an "Ocean Transportation Intermediary (**OTI**)" and "Non-Vessel Operating Common Carrier (**NVOCC**)" within the meaning of 46 U.S.C. § 40102, carrying on business subject to the provisions of the Shipping Act of 1984, as amended from time to time, and the regulatory framework of the Federal Maritime Commission (**FMC**). In such capacity, Respondent No. 2 participated in arranging the transportation of the Complainant's cargo, maintained the contractual relationship with the Complainant in respect of the subject shipments and communicated and/or passed through the impugned detention charges which form the subject matter of the present Complaint.
7. The 'Respondent No. 3', **Eagle Maritime of America Inc.**, doing business as "**EGL Maritime**" (hereinafter referred to as "**Respondent No. 3**" or "**EGL Maritime**"), is a corporation having its principal office at 1 Newark Street, Suite 18, Hoboken, New Jersey 07030, United States of America [Email: info@eglmartime.com] is engaged, *inter-alia*, in the business of providing international freight forwarding, logistics and ocean transportation intermediary services in the foreign commerce of the United

States and is a Federal Maritime Commission-accredited and Ocean Transportation Intermediary.

8. The Respondent No. 3, at all times material to the present Complaint in relation to the subject shipments, acted as the Destination Agent, as expressly reflected in the House Bills of Lading issued by Respondent No. 2 under the trade name "**EGL Maritime**" and actively participated in the administration and coordination of the subject shipments, communicated, processed and administered the disputed detention charges, received and forwarded the Complainant's representations concerning the detention invoices, communicated the decisions of Respondent No. 1 to the Complainant, and remained actively involved in the dispute concerning the detention charges. As such the Respondent No. 3 is a proper and necessary party to the present proceedings.

III. JURISDICTION

9. This Commission has subject matter jurisdiction over the present Verified Complaint as per the **Shipping Act of 1984**, as amended from time to time, including but not limited to the provisions contained in 46 U.S.C. §§ 40101, and the rules and regulations promulgated thereunder.
10. The present Complaint is being instituted under **46 U.S.C. § 41301**, seeking reparations and such other relief as the Commission may deem just and proper for the injuries and losses sustained by the Complainant on account of the Respondent's acts, omissions, practices and conduct constituting violations of the Shipping Act of 1984, as amended.

11. This Commission has the necessary jurisdiction over Respondent No. 1, CMA CGM (America) LLC, inasmuch as it was, at all times material to the present Complaint, a "common carrier" within the meaning of 46 U.S.C. § 40102(7), engaged in the foreign commerce of the United States and subject to the regulatory jurisdiction of the Federal Maritime Commission.
12. This Commission likewise has necessary jurisdiction over Respondent No. 2 & 3 i.e. Pridel Private Limited (Pridel Logistics) & EGL Maritime, inasmuch as, at all times material to the present Complaint, the Respondent No. 2 & 3 acted as a Non-Vessel Operating Common Carrier ("**NVOCC**") and Ocean Transportation Intermediary ("**OTI**") in the foreign commerce of the United States, issued the House Bill of Lading (HBL) governing the subject shipments, maintained the contractual relationship with the Complainant in respect of the subject shipments.
13. That the acts, omissions and practices complained of herein relate directly to the assessment, billing, communication and continued demand of detention charges in connection with the receiving, handling, storing and delivering of the Complainant's cargo in the foreign commerce of the United States. The Respondent's conduct, as more fully set forth herein, constitutes unjust and unreasonable regulations and practices relating to the receiving, handling, storing and delivering of property and imposition of detention charges in contravention of settled principles of the law.
14. The Complainant further states that the detention charges forming the subject matter of the present Complaint were assessed, billed and sought

to be recovered in circumstances where the subject containers remained beyond the possession and effective commercial control of the Complainant owing to a mandatory examination conducted by the United States Customs and Border Protection ("**CBP**"), thereby giving rise to a dispute as to the reasonableness of such detention charges under the Shipping Act, the Federal Maritime Commission's **Interpretative Rule on Demurrage and Detention** embodied in **46 C.F.R. § 545.5**, and the billing practices prescribed under **46 C.F.R. Part 541**.

15. The Complainant most respectfully submits that the assessment and continued demand of the impugned detention charges, in the facts and circumstances set forth in the present Complaint, constitute violations of **46 U.S.C. § 41102(c)** and, insofar as Respondent No. 1 is concerned, also constitute a violation of **46 U.S.C. § 41104(a)(14)**, which prohibits a common carrier from assessing detention charges that fail to comply with the requirements of the Shipping Act and the applicable regulations of the Federal Maritime Commission. Accordingly, this Commission has the jurisdiction to entertain, adjudicate and grant the reliefs prayed for in the present Complaint.

IV. PRELIMINARY STATEMENT

16. That 'India Connection' is engaged, *inter-alia*, in the business of importing, marketing, distribution and wholesale supply of consumer merchandise and allied products within the United States of America (USA) through established international procurement and maritime supply chains. In the ordinary course of its business, the Complainant regularly imports

containerized cargos from overseas manufacturers and suppliers through Vessel Ocean Common Carriers ("VOCCs"), Non-Vessel Operating Common Carriers ("NVOCCs"), freight forwarders and other entities engaged in international ocean transportation. The efficient movement of cargo and the timely availability and return of shipping equipment are essential to the Complainant's business operations, inventory management and fulfilment of its commercial commitments.

17. That Owing to the nature of its business, the Complainant has, over a considerable period of time, established regular commercial relationships with several ocean carriers, NVOCCs and logistics service providers, including the Respondent(s) herein. Throughout its business operations, the Complainant has consistently complied with all applicable shipping, customs and regulatory requirements, including the timely submission of shipping instructions, import-documentation, customs-declarations, prompt clearance of cargo and expeditious return of shipping containers upon completion of unloading operations. At no point has the Complainant deliberately retained shipping equipment beyond the permissible period or engaged in any conduct intended to impede freight fluidity or frustrate the commercial purpose underlying detention charges.
18. The present Complaint arises from the Respondent's assessment, billing and continued demand of detention charges in relation to two international shipments imported by the Complainant into the United States, notwithstanding that the subject containers remained under a mandatory examination conducted by the United States Customs and Border

Protection ("CBP") and were consequently beyond the possession, custody and effective commercial control of the Complainant for a substantial period. The Complainant respectfully submits that, in the peculiar facts and circumstances of the present case, the Respondent's conduct constitutes an unjust and unreasonable practice within the meaning of the Shipping Act of 1984, as amended, thereby giving rise to the present Complaint.

19. That the present Complaint pertains to two international import shipments undertaken by the Complainant under House Bill of Lading Nos. **CAD0856129 (Exhibit-C Pg. 55)** and **CAD0856323 (Exhibit-D Pg. 57)**, in respect whereof the subject cargo was transported by Respondent No. 1, CMA CGM (America) LLC, while the House Bill of Lading were issued by Respondent No. 2, Pridel Logistics, acting as the contractual Non-Vessel Operating Common Carrier (NVOCC).
20. That the first of the subject shipments was booked by the Complainant through Respondent No. 2 under House Bill of Lading No. **CAD0856129**, pertaining to Container Nos. **TCNU6996440** and **CMAU8547004**. The booking for the said shipment was placed by the Complainant on **03 February 2026** (having free time of 10 days), whereafter the booking was duly confirmed on **06 February 2026**. The subject containers were thereafter dispatched from the origin on **10 February 2026**, reached **Mundra Port, India**, on **13 February 2026**, and were duly loaded on board the carrying vessel which sailed from the Port of Loading on **18 February 2026** for transportation to the United States.

21. That the second shipment forming the subject matter of the present Complaint was booked by the Complainant through Respondent No. 2 under House Bill of Lading No. **CAD0856323**, (having free time of 10 days) pertaining to Container Nos. **BMOU6712452** and **TEMU6608436**. The booking for the said shipment was placed on **07 February 2026**, was duly confirmed on the very same day, and the containers were thereafter dispatched from the origin on **11 February 2026**. The said containers reached **Mundra Port, India**, on **14 February 2026**, and were subsequently loaded on board the carrying vessel which sailed from the Port of Loading on **18 February 2026** for transportation to the United States.
22. That prior to the export of the aforesaid shipments, the Complainant, acting through its appointed logistics partners and customs representatives, duly complied with all statutory, regulatory and documentary requirements governing the export and import of the subject cargo. All requisite shipping instructions, commercial invoices, packing lists, customs declarations, Advance Manifest System (AMS) filings, Importer Security Filing (ISF), and all other applicable customs and regulatory compliances were completed accurately, diligently and within the prescribed timelines. At no stage prior to shipment was any discrepancy, deficiency or non-compliance pointed out by any customs, port or regulatory authority either in India or in the United States.
23. That both the aforesaid shipments reached their destination in the United States on **05 April 2026**. However, shortly thereafter, the Complainant was informed that the subject containers had been selected by the United States

Customs and Border Protection ("**CBP**") for a mandatory examination. The Complainant subsequently received communications confirming that a Customs Hold had been placed upon the subject containers with effect from **14 March 2026**, whereafter the containers remained subject to the Customs examination process in accordance with the applicable laws and procedures governing imports into the United States.

24. That pursuant to the aforesaid Customs Hold, all four containers, namely Container Nos. **TCNU6996440**, **CMAU8547004**, **BMOU6712452** and **TEMU6608436**, were, on **08 April 2026**, transferred from the marine terminal to the designated Port Liberty CES (Centralized Examination Station) for the purpose of facilitating the Customs examination directed by the United States Customs and Border Protection (**CBP**). From the said date onwards, the subject containers remained within the exclusive custody, possession and operational control of the designated Customs Examination Station and the competent governmental authorities, rendering the containers commercially unavailable and inaccessible to the Complainant until completion of the examination process.

25. That throughout the subsistence of the aforesaid Customs examination, neither the Complainant nor any person acting on its behalf possessed any legal authority or practical ability to procure the release, retrieval, unloading or return of the subject containers. The duration of the Customs examination, the movement of the containers within the Customs Examination Station and the eventual release thereof remained matters exclusively within the administrative control and discretion of the United

States Customs and Border Protection and the designated Customs Examination Station. Consequently, the Complainant had absolutely no commercial control over the subject containers during the period of the Customs Hold.

26. That the Customs examination was thereafter completed without any adverse finding whatsoever against the Complainant, the consignor or the subject cargo. No allegation of misdeclaration, undervaluation, concealment, prohibited import, customs violation or breach of any statutory or regulatory requirement was ever levelled by the United States Customs and Border Protection. On the contrary, the completion of the examination without any objection unequivocally established that the subject shipments fully complied with all applicable customs and import requirements and that the Customs examination was merely a random governmental enforcement measure undertaken in the ordinary course of Customs administration.

27. That following completion of the Customs examination, Container Nos. **TCNU6996440** and **TEMU6608436** became commercially available for pickup on **24 April 2026**, whereas Container Nos. **CMAU8547004** and **BMOU6712452** became commercially available for pickup on **29 April 2026** i.e. much beyond the free time period of 10 days; as reflected in the contemporaneous Port Liberty CES Tracking Reports (**Exhibit-G Pg. 63**). Immediately upon the containers becoming commercially accessible, the Complainant, without any avoidable delay, promptly arranged

transportation, completed unloading operations and initiated the return of the empty containers to the designated facility.

28. That the documentary record clearly establishes that Container Nos. **TCNU6996440** and **CMAU8547004** were returned to the Respondent No.1 Shipping Line on **29 April 2026**, Container No. **TEMU6608436** was returned on **01 May 2026**, and **Container No.** BMOU6712452 was returned on **04 May 2026**. The aforesaid chronology unequivocally demonstrates that the Complainant acted with utmost expedition and commercial diligence immediately upon the containers becoming available after completion of the Customs examination, leaving no scope whatsoever for any allegation that the Complainant intentionally retained the containers or failed to return them within a reasonable time after restoration of its possession and commercial control.
29. That subsequently upon the said shipments, the Respondent No. 1 raised Detention Invoice No. **NAIC1873057 (Exhibit-E Pg. 59)** pertaining to Container Nos. **TCNU6996440** and **CMAU8547004**, and Detention Invoice No. **NAIC1879457** pertaining to Container Nos. **BMOU6712452** and **TEMU6608436**, demanding detention charges from the Complainant despite the peculiar facts and circumstances governing the movement and availability of the said containers.
30. That the dispute forming the subject matter of the present Complaint does not concern the legality of detention charges as a commercial concept. The Complainant fully appreciates that detention charges constitute a

recognized commercial mechanism intended to promote freight fluidity and encourage the prompt return of shipping equipment. The grievance of the Complainant is confined solely to the assessment and continued demand of detention charges during a period when the subject containers remained under a mandatory examination conducted by the United States Customs and Border Protection ("**CBP**"), rendering the containers commercially inaccessible and beyond the possession, custody and effective control of the Complainant without any omission, negligence, default or other extenuating circumstance attributable to the Complainant.

31. The documentary record unequivocally demonstrates that upon the arrival of the subject shipments at destination, all four containers forming part of House Bill of Lading Nos. **CAD0856129** and **CAD0856323** were, on **08 April 2026**, transferred to the designated Customs Examination Station pursuant to a mandatory examination initiated by the United States Customs and Border Protection ("**CBP**"). During the subsistence of the said Customs examination, the Complainant neither enjoyed possession of the containers nor exercised any practical or commercial control over the movement, retrieval or return of the shipping equipment. The completion of the Customs examination, release of the containers and their eventual commercial availability were matters entirely within the exclusive domain of the competent governmental authorities and remained beyond the influence or control of the Complainant.
32. It is respectfully submitted that the Customs examination ultimately concluded without any allegation of misdeclaration, concealment,

regulatory non-compliance or any other violation being attributed either to the Complainant or to the consignor. The Complainant had duly complied with all statutory and regulatory requirements governing the importation of the subject cargo, including the filing of all requisite shipping and customs documentation. The examination was undertaken purely as a governmental enforcement measure in the ordinary course of Customs administration and was not occasioned by any default, omission or misconduct on the part of the Complainant.

33. Immediately upon completion of the Customs examination and the subject containers becoming commercially available for retrieval, the Complainant acted with utmost expedition in taking delivery of the cargo, completing unloading operations and returning the empty containers to the designated facility. The documentary record establishes that Container Nos. **TCNU6996440** and **CMAU8547004** were returned on **29 April 2026**, Container No. **TEMU6608436** was returned on **01 May 2026**, and Container No. **BMOU6712452** was returned on **04 May 2026**, thereby clearly demonstrating the *bonafide* conduct of the Complainant and its consistent intention to comply with all obligations relating to the timely return of shipping equipment immediately upon restoration of its commercial control over the containers. It is pertinent to mention here that Container Nos. **TCNU6996440** and **CMAU8547004** admittedly had a free time of 10 days.
34. Notwithstanding the aforesaid factual position and despite repeated representations submitted by the Complainant supported by the relevant

Port Liberty CES Tracking Reports, Net-CHB Transmission Reports **(Exhibit-H Pg.75)**, email correspondence and other contemporaneous documentary evidence establishing the period during which the containers remained unavailable for commercial use, the Respondents failed to accord due consideration to the peculiar facts governing the present shipments and continued to insist upon the payment of detention charges under **Invoice Nos. NAIC1873057 and NAIC1879457**, thereby compelling the Complainant to invoke the jurisdiction of this Commission under the Shipping Act of 1984.

35. The present proceedings have, therefore, been instituted not with a view to challenge the commercial utility of detention charges generally, but to seek an impartial adjudication on the limited question whether, in the peculiar facts and circumstances of the present case, the assessment and continued demand of detention charges during a period when the subject containers remained beyond the possession and effective commercial control of the Complainant owing to a mandatory governmental examination constitute unjust and unreasonable practices within the meaning of the Shipping Act of 1984 and the regulations framed thereunder.
36. That immediately upon receipt of the above-mentioned detention invoices, the Complainant, acting bonafide and in the ordinary course of business, initiated discussions with the Respondents and the intermediaries involved in the transportation chain, viz. Eagle Maritime Inc. and K.K. Logistics, with a view to amicably resolving the dispute. Throughout the course of such correspondence, the Complainant consistently maintained that the

detention charges had been levied during a period when the subject containers remained under the exclusive custody and control of the United States Customs and Border Protection ("CBP") and were consequently beyond the possession and effective commercial control of the Complainant.

37. That on 12 May 2026 (**Exhibit-J Pg. 79**), the Complainant addressed its first detailed communication seeking waiver of the detention charges levied under Detention Invoice Nos. **NAIC1873057** and **NAIC1879457**, explaining that the delay had arisen solely on account of the mandatory Customs examination and not due to any act or omission attributable to the Complainant. The said communication was thereafter forwarded by Eagle Maritime Inc. to Respondent No. 1, **CMA CGM**, requesting reconsideration of the Complainant's grievance.
38. That vide email dated **26 May 2026 (Exhibit-K Pg.80)**, Respondent No. 1 declined the Complainant's request for waiver of the detention charges and maintained its demand under the detention invoices issued. The said decision was thereafter communicated by Eagle Maritime Inc. to the Complainant under its email of the same date, with copies marked to Pridel Logistics and K.K. Logistics.
39. That being dissatisfied with the aforesaid response, the Complainant addressed a comprehensive representation dated **02 June 2026 (Exhibit-L Pg.82)** directly to Respondent No. 1 disputing the levy of detention charges and once again seeking complete waiver thereof on the ground that the containers had remained unavailable owing to the Customs

examination process and on **03 June 2026**, Eagle Maritime Inc. issued a reminder to Respondent No. 1 requesting that the Complainant's representation be duly considered.

40. That Respondent No. 1, vide its email dated **03 June 2026 (Exhibit-M Pg.84)**, rejected the Complainant's request for complete waiver and merely offered a nominal waiver of **USD 150**, without addressing the principal grievance raised by the Complainant concerning the effect of the mandatory Customs examination upon the accrual of detention charges.
41. That on **04 June 2026 (Exhibit-N Pg.85)**, the Complainant submitted a detailed factual and legal representation to Respondent No. 1 specifically pointing out that the dispute pertained to both Detention Invoice Nos. **NAIC1873057** and **NAIC1879457**, whereas the Respondent had addressed only one of the invoices. The Complainant further relied upon the Port Liberty CES Tracking Reports, Net-CHB Transmission Reports, the applicable principles under the Shipping Act of 1984, the Ocean Shipping Reform Act, 2022, and the regulatory framework administered by the Federal Maritime Commission to demonstrate that the subject containers had remained under active government examination and were consequently unavailable for retrieval or return during the relevant period.
42. That in response to the Complainant's request seeking complete waiver of the detention charges, Respondent No. 1, vide its email dated **05 June 2026 (Exhibit-O Pg.87)**, rejected the request primarily on the ground that the subject containers had remained outside the marine terminal beyond

the applicable free-time period and that, under the merchant haulage arrangement, detention charges continued to accrue until the containers were returned. At the same time, however, Respondent No. 1 expressly invited the Complainant to furnish any additional correspondence or documentary material demonstrating circumstances which had allegedly prevented the timely return of the containers and represented that such material would be reviewed for further consideration. Acting bona fide and relying upon the said representation, the Complainant thereafter furnished extensive contemporaneous documentary evidence, including Customs records **(Exhibit-I Pg.77)**, Port Liberty CES Tracking Reports, NetCHB Transmission Reports and detailed factual explanations demonstrating that the containers remained unavailable solely by reason of a mandatory Customs examination. As would subsequently become evident, notwithstanding the repeated production of the very material sought by Respondent No. 1, the Respondents failed to objectively reconsider the dispute and persisted in demanding payment of the impugned detention charges.

43. That the aforesaid representation was again followed up by Eagle Maritime Inc. through its reminder dated **09 June 2026 (Exhibit-P Pg.89)**, requesting Respondent No. 1 to reconsider the Complainant's grievance and addition to the said communication sent by the Complainant Eagle Maritime Inc., also addressed a communication dated **11 June 2026 (Exhibit-Q Pg.90)** to Respondent No. 1 requesting reconsideration of the disputed detention invoices. However, Respondent No. 1, vide its email

dated **11 June 2026**, reiterated its earlier stand, maintained the levy of the detention charges and restricted the waiver to USD 150. On the very same day, Eagle Maritime Inc. communicated the said decision to the Complainant and called upon it to make payment of the disputed detention invoices.

44. That the Complainant promptly replied on **12 June 2026 (Exhibit-R Pg.91)**, protesting against the decision of Respondent No. 1 and reiterating that the detention charges had been levied despite the containers remaining under a mandatory Customs examination over which the Complainant exercised no control whatsoever.
45. The Complainant, further vide its email dated **13 June 2026 (Exhibit-T Pg.93)**, again expressly clarified that its claim for waiver of the detention charges was **not predicated upon the existence of any commercial extension of the Last Free Day ("LFD")**, but arose directly from the provisions of the Shipping Act of 1984, the Ocean Shipping Reform Act, 2022, and the Federal Maritime Commission's Interpretative Rule governing demurrage and detention practices. The Complainant categorically pointed out that the subject containers remained under the exclusive custody and operational control of the United States Customs and Border Protection ("CBP") pursuant to a mandatory government examination.
46. That Respondent No. 1 thereafter issued a further communication dated **16 June 2026 (Exhibit-U Pg.94)**, asserting that no documentation had been furnished establishing any entitlement to an extension of free time in

respect of the subject containers. In response thereto, the Complainant, vide its detailed communication dated **18 June 2026 (Exhibit-V Pg.95)**, reiterated the factual and legal basis of its claim, emphasized that the detention charges had accrued solely because of a government-mandated Customs examination, pointed out that no contractual provision, tariff, statutory authority or FMC guidance had been identified by Respondent No. 1 justifying the levy of detention charges during the period of active Customs examination, and, solely as a gesture of commercial goodwill and without admitting any liability, proposed a one-time settlement equivalent to 25% of the total disputed detention charges in order to preserve the longstanding business relationship between the parties.

47. That Respondent No. 1, vide its email dated **19 June 2026 (Exhibit-W Pg.96)**, once again rejected the Complainant's contentions and sought to justify the detention charges by asserting that the containers had been "Gate-Out Full" on **08 April 2026** and were therefore available to the merchant during the relevant period. The Complainant immediately refuted the said assertion by its detailed reply dated **20 June 2026 (Exhibit-X Pg.97)**, explaining that the "Gate-Out Full" status merely reflected the movement of the containers from the marine terminal to the **Port Liberty CES** for Customs examination and did not signify that the containers had become commercially available to the consignee. The Complainant also furnished a detailed container-wise chronology of the Customs Hold, movement to the Customs Examination Station, actual commercial

availability of each container and the dates on which the containers were returned after completion of the examination process.

48. That despite the aforesaid detailed correspondence and repeated production of contemporaneous documentary evidence including the NetCHB Transmission Reports, Port Liberty CES Tracking Reports, Customs records and container movement details, Respondent No. 1 failed to furnish any substantive response to the Complainant's email dated 20 June 2026. Consequently, as a final effort to avoid unnecessary litigation and preserve the longstanding commercial relationship between the parties, the Complainant addressed its Final Representation dated **30 June 2026 (Exhibit-Y Pg.99)** to Respondent No. 1, comprehensively setting out the factual chronology, contractual framework, applicable legal principles, relevant provisions of the Shipping Act of 1984, the Ocean Shipping Reform Act, 2022, the Federal Maritime Commission's interpretative guidance and the judicial precedents governing detention charges, while once again requesting complete waiver of the detention charges before being constrained to invoke the jurisdiction of this Commission.

49. That after the Complainant's Final Representation and the comprehensive documentary material furnished in support thereof, Respondent No. 2 by its communication dated **06 July 2026 (Exhibit-Z Pg.104)**, sent an email to Respondent No. 1 for reconsideration of the detention charges and forwarded the Complainant's representations for review. The said communication clearly demonstrates that Respondent No. 2 itself

considered the dispute to warrant further examination by Respondent No. 1 and acknowledged that the matter had not attained finality.

50. The Respondent No. 1, by its email dated **17 July 2026(Exhibit-AA Pg.105)**, reiterated its earlier position and declined to withdraw or substantially reconsider the impugned detention charges. Despite having been furnished with the Complainant's detailed representations, the Port Liberty CES Tracking Reports, NetCHB Transmission Reports, Customs records and the applicable statutory and regulatory framework governing detention practices, Respondent No. 1 failed to undertake any meaningful examination of the factual and legal issues repeatedly brought to its notice and instead maintained its earlier determination.
51. That subsequently Eagle Maritime Inc., as the destination agent again addressed a Email dated **17 July 2026 (Exhibit-BB Pg.106)** to Respondent No. 1 requesting that the Complainant's grievance concerning the impugned detention charges be reconsidered.
52. That Respondent No. 1, by its Email dated **20 July 2026 (Exhibit-CC Pg.107)**, finally reaffirmed its decision to maintain the detention charges notwithstanding the repeated representations, supporting documentary evidence and requests for reconsideration submitted by the Complainant. The said communication neither meaningfully addressed the evidence demonstrating that the subject containers had remained under the exclusive custody and operational control of the United States Customs and Border Protection ("CBP") during the relevant period nor dealt with the

Complainant's reliance upon the Shipping Act of 1984, the Ocean Shipping Reform Act, 2022 and the Federal Maritime Commission's regulatory guidance governing detention practices. Instead, Respondent No. 1 merely persisted with its earlier position, thereby exhausting all reasonable prospects of an amicable resolution and leaving the Complainant with no efficacious remedy except to invoke the jurisdiction of this Commission.

53. That the present Complaint has not been instituted on account of a mere commercial disagreement or because the Complainant seeks to avoid its legitimate contractual obligations. On the contrary, the Complainant has, over a considerable period commencing from **12 May 2026** and continuing through its successive representations dated **02 June 2026, 04 June 2026, 12 June 2026, 18 June 2026, 20 June 2026** and finally **30 June 2026**, furnished to the Respondents comprehensive documentary evidence, including but not limited to the Port Liberty CES Tracking Reports, NetCHB Transmission Reports, container movement records, customs communications and other contemporaneous documents, unequivocally demonstrating that the subject containers remained unavailable for retrieval or return owing solely to a mandatory examination conducted by the United States Customs and Border Protection ("**CBP**"). Notwithstanding the repeated production of such documentary evidence and the Complainant's consistent request that the detention charges be reconsidered in light of the governing statutory and regulatory principles, the Respondents persisted in demanding payment under Detention Invoice Nos. **NAIC1873057** and **NAIC1879457**, being entirely indifferent to the

settled position of law in cases of levying of detention charges during the period in which the subject containers remained beyond the possession and effective commercial control of the Complainant owing to the ongoing government-mandated examination process.

54. As a direct and proximate consequence of the Respondent's acts, omissions and unjust and unreasonable practices more particularly described hereinabove, the Complainant is suffering substantial commercial prejudice, financial exposure and consequential losses. Despite the Complainant having complied with all applicable contractual, customs and regulatory obligations and having acted with utmost expedition in taking delivery of the cargo and returning the subject containers immediately upon their becoming commercially available, the Respondents have continued to assert liability against the Complainant under Detention Invoice Nos. **NAIC1873057** and **NAIC1879457**, thereby compelling the Complainant to devote considerable time, effort and resources towards contesting the impugned detention charges and protecting its commercial interests.
55. The Complainant respectfully submits that the controversy in the present proceedings ***does not concern a situation where the governmental examination had concluded during the applicable free-time period, thereby affording the consignee a reasonable opportunity to retrieve the cargo and return the containers before detention charges commenced to accrue. On the contrary, the Customs records, Port Liberty CES Tracking Reports and NetCHB Transmission Reports unequivocally establish that the subject containers continued to***

remain under the exclusive custody and operational control of the United States Customs and Border Protection ("CBP") and the designated Centralized Examination Station well beyond the expiry of the applicable free-time period, with the result that the Complainant neither possessed nor could reasonably have exercised any legal, practical or commercial ability to retrieve, unload or return the containers before detention charges began to accrue.

Consequently, throughout the period in dispute, the assessment of detention charges could not and did not operate as a financial incentive to promote freight fluidity or the timely return of equipment, because the performance sought to be incentivized was, as a matter of objective fact, incapable of being performed by the Complainant. The continued assessment of detention charges in such circumstances therefore ceased to serve their intended regulatory purpose and became arbitrary, punitive and unreasonable within the meaning of the Shipping Act of 1984 and the Federal Maritime Commission's Interpretative Rule embodied in 46 C.F.R. § 545.5.

56. The injuries and losses suffered by the Complainant, and for which the Complainant seeks appropriate reparations and other relief from this Commission, include, *inter-alia*:

- a. The wrongful assessment, billing and continued demand of detention charges under Detention Invoice Nos. **NAIC1873057** and **NAIC1879457**, which, in the facts and circumstances of the present case,

constitute unjust and unreasonable detention charges assessed during a period when the subject containers remained beyond the possession and effective commercial control of the Complainant owing to a mandatory examination conducted by the United States Customs and Border Protection **(CBP)**;

- b. The financial exposure and commercial prejudice arising from the Respondent's continued insistence upon payment of the aforesaid detention charges notwithstanding the repeated production of contemporaneous documentary evidence demonstrating that the delay in returning the subject containers was occasioned solely by a government-mandated Customs examination and not by any act, omission or default attributable to the Complainant;
- c. The administrative costs, business disruption, diversion of managerial time and resources and other incidental expenses incurred by the Complainant in pursuing repeated representations, collating documentary evidence, engaging with the Respondents and their intermediaries and otherwise mitigating the consequences of the Respondent's unjust and unreasonable practices;

- d. Such additional consequential losses, if any, as may be established during the course of these proceedings.

V. SHIPPING ACT VIOLATIONS

COUNT-I: VIOLATION OF 46 U.S.C. § 41102(c)

Unjust and Unreasonable Assessment of Detention Charges Contrary to the Incentive Principle

57. The Complainant repeats and realleges each and every allegation contained in Paragraph Nos. 1 through 46 of the present Complaint as though the same were fully reproduced herein and forms an integral part of the present Count and the same are not repeated herein for the sake of brevity and to avoid prolixity.
58. At all times material to the present Complaint, Respondent No. 1 was and continues to be a "Common Carrier" within the meaning of 46 U.S.C. § 40102(7), while Respondent No. 2 & 3 acted as the contractual Non-Vessel Operating Common Carrier ("**NVOCC**") and Ocean Transportation Intermediary ("**OTI**") in relation to the subject shipments. Consequently, both the Respondents were under a statutory obligation to establish, observe and enforce just and reasonable regulations and practices relating to or connected with the receiving, handling, storing and delivering of the Complainant's cargo in accordance with the provisions of the Shipping Act of 1984, as amended.
59. 46 U.S.C. § 41102(c) expressly mandates that a common carrier, marine terminal operator or ocean transportation intermediary shall not fail to establish, observe and enforce just and reasonable regulations and

practices relating to or connected with the receiving, handling, storing or delivering of property. The reasonableness of detention practices adopted by regulated entities is therefore required to be assessed not merely from a contractual perspective but also in the light of the statutory obligations imposed under the Shipping Act and the regulatory framework administered by the Federal Maritime Commission.

60. The detention charges forming the subject matter of Detention Invoice Nos. **NAIC1873057** and **NAIC1879457**, relating to Container Nos. **TCNU6996440**, **CMAU8547004**, **BMOU6712452** and **TEMU6608436**, constitute practices directly connected with the receiving, handling, storing and delivery of the Complainant's property and, therefore, fall squarely within the scope and ambit of 46 U.S.C. § 41102(c).
61. The Federal Maritime Commission has, through its Interpretative Rule on Demurrage and Detention under 46 C.F.R. Part 545, recognised that the primary commercial purpose underlying demurrage and detention charges is to function as a financial incentive to promote freight fluidity by encouraging the prompt retrieval of cargo and the timely return of shipping equipment. The Commission has further recognised that the reasonableness of such charges is to be evaluated by considering the extent to which they actually serve their intended incentive function in the particular facts and circumstances of each case.
62. In the present case, the documentary evidence unequivocally establishes that the subject containers remained under a mandatory examination

conducted by the United States Customs and Border Protection ("**CBP**"), having been transferred to the designated Port Liberty Centralized Examination Station (**CES**) on **08 April 2026**, where they remained beyond the possession, custody and effective commercial control of the Complainant until their respective dates of commercial availability. During the said period, the Complainant neither possessed the legal authority nor enjoyed the practical ability to retrieve, unload or return the subject containers, the movement and release of which remained exclusively dependent upon the completion of the governmental examination process.

63. The Customs examination was not occasioned by any act, omission, negligence, misdeclaration, regulatory default or other extenuating circumstance attributable to the Complainant. On the contrary, the Complainant had, prior to shipment, duly complied with all applicable statutory, customs and regulatory requirements, including the timely filing of all requisite shipping and customs documentation, and the Customs examination ultimately concluded without any allegation of irregularity, violation or non-compliance against either the Complainant or the subject cargo.

64. Immediately upon the subject containers becoming commercially available following completion of the Customs examination, the Complainant acted with utmost expedition in taking delivery of the cargo, completing unloading operations and returning the empty containers to the designated facility. The contemporaneous records establish that Container Nos. **TCNU6996440** and **CMAU8547004** were returned on **29 April 2026**,

Container No. **TEMU6608436** on **01 May 2026**, and Container No. **BMOU6712452** on **04 May 2026**, thereby demonstrating that the Complainant did not retain possession of the containers for any period beyond what was reasonably necessary after restoration of its commercial control over the same.

65. In these circumstances, the continued assessment and demand of detention charges by the Respondents during the period in which the subject containers remained beyond the possession and effective commercial control of the Complainant ceased to perform the very commercial function for which detention charges exist. No amount of financial liability imposed upon the Complainant during the subsistence of the mandatory Customs examination could have accelerated the return of the containers, promoted freight fluidity, improved equipment utilisation or otherwise influenced the conduct of the Complainant, who remained incapable of retrieving or returning the containers until the governmental examination had concluded. ***The present case is therefore fundamentally distinguishable from situations in which the consignee retains a reasonable opportunity to retrieve the cargo before expiration of free time, because in the present matter no such opportunity ever arose until after detention charges had already begun to accrue.***

66. The Complainant respectfully submits that the Respondents, notwithstanding repeated representations dated **12 May 2026, 02 June 2026, 04 June 2026, 12 June 2026, 18 June 2026, 20 June 2026** and

30 June 2026, together with the contemporaneous **Port Liberty CES Tracking Reports, Net-CHB Transmission Reports**, Customs records and other documentary evidence furnished by the Complainant, failed to meaningfully evaluate whether the impugned detention charges continued to serve their intended incentive purpose in the peculiar facts of the present case and instead persisted in demanding payment under Detention Invoice Nos. **NAIC1873057** and **NAIC1879457** without identifying any contractual provision, tariff, statutory authority or applicable regulation expressly authorising the levy of detention charges during the period of mandatory governmental examination.

67. The Respondents' continued assessment, billing and demand of detention charges in the aforesaid circumstances constitute unjust and unreasonable regulations and practices relating to or connected with the receiving, handling, storing and delivering of the Complainant's property and are accordingly violative of 46 U.S.C. § 41102(c), read in conjunction with the principles embodied in 46 C.F.R. § 545.5, thereby rendering the Respondents jointly and severally liable to compensate the Complainant for the losses, injuries and damages suffered by it and to grant such other relief as this Commission may deem just and proper.

COUNT-II: VIOLATION OF 46 U.S.C. § 41104(a)(14)

Unjust and Unreasonable Assessment of Detention Charges Contrary to the Incentive Principle

68. The Complainant repeats and realleges each and every allegation contained in foregoing Paragraphs of the present Complaint as though the same were

fully reproduced herein and made an integral part of this Count and the same are not repeated herein for the sake of brevity and to avoid prolixity.

69. At all times material to the present Complaint, Respondent No. 1, **CMA CGM (America) LLC**, was and continues to be a Common Carrier within the meaning of 46 U.S.C. § 40102(7) and, accordingly, is subject to the provisions of the Shipping Act of 1984, as amended, including the obligations imposed under 46 U.S.C. § 41104(a)(14).

70. 46 U.S.C. § 41104(a)(14) prohibits a common carrier from invoicing, charging, assessing or collecting detention charges that fail to comply with the requirements of the Shipping Act and the regulations promulgated thereunder. The said provision obligates a common carrier to ensure that detention charges are assessed only in a manner consistent with the statutory framework governing such charges.

71. As more particularly pleaded hereinabove, Respondent No. 1 assessed and continued to demand payment under Detention Invoice Nos. **NAIC1873057** and **NAIC1879457** notwithstanding that the subject containers remained under the exclusive custody and operational control of the United States Customs and Border Protection ("**CBP**") and the designated Port Liberty Centralized Examination Station ("**CES**") during the material period and were consequently unavailable for retrieval or return by the Complainant.

72. The Complainant repeatedly placed before Respondent No. 1 contemporaneous documentary evidence, including the Net-CHB Transmission Reports, Port Liberty CES Tracking Reports, Customs records

and detailed representations dated **12 May 2026, 02 June 2026, 04 June 2026, 12 June 2026, 18 June 2026, 20 June 2026 and 30 June 2026**, requesting reconsideration and waiver of the impugned detention charges. Notwithstanding the same, Respondent No. 1 persisted in demanding payment without demonstrating that the assessment of the impugned detention charges complied with the Shipping Act, the applicable Federal Maritime Commission regulations or the principles governing the reasonableness of detention charges.

73. The Complainant respectfully submits that the Federal Maritime Commission has consistently recognised that detention charges are intended to promote freight fluidity and the timely return of equipment, and not to operate as punitive charges. Consistent with 46 C.F.R. § 545.5 and as recognised by the United States Court of Appeals in “**Evergreen Shipping Agency (America) Corp. v. Federal Maritime Commission**”, the reasonableness of detention charges depends upon whether they are capable of encouraging the timely return of equipment. In the present case, the subject containers remained beyond the possession and effective commercial control of the Complainant by reason of the continuing Customs examination. Accordingly, the continued assessment of detention charges ceased to serve their intended purpose and became arbitrary, punitive and unreasonable within the meaning of the Shipping Act.

74. The Complainant further most respectfully submits that the assessment, invoicing and continued demand of detention charges by Respondent No. 1 in the aforesaid circumstances constitute a violation of 46 U.S.C. §

41104(a)(14), thereby entitling the Complainant to reparations and such other relief as this Commission may deem just, equitable and proper.

COUNT-III: VIOLATION OF 46 U.S.C. § 41102(c)
Failure to Maintain Just and Reasonable Billing and Dispute
Resolution Practices

75. The Complainant repeats and realleges each and every allegation contained in foregoing Paragraphs of the present Complaint as though the same were fully reproduced herein and made an integral part of this Count and the same are not repeated herein for the sake of brevity and to avoid prolixity.
76. The obligation imposed under 46 U.S.C. § 41102(c) extends not only to the assessment of detention charges but also to the establishment, observance and enforcement of just and reasonable regulations and practices relating to the billing, administration and resolution of disputes concerning charges connected with the receiving, handling, storing and delivery of property.
77. As detailed hereinabove, immediately upon receipt of the impugned detention invoices, the Complainant consistently engaged with the Respondents through a series of communications and detailed representations dated **12 May 2026, 02 June 2026, 04 June 2026, 12 June 2026, 18 June 2026, 20 June 2026 and 30 June 2026**, supported by contemporaneous documentary evidence including the Net-CHB Transmission Reports, Port Liberty CES Tracking Reports, Customs records and container movement reports, demonstrating that the subject

containers remained beyond the possession and effective commercial control of the Complainant during the material period.

78. Notwithstanding the repeated production of the aforesaid documentary evidence, the Respondents failed to undertake any meaningful examination of the factual basis of the Complainant's grievance. The replies issued by or on behalf of the Respondents merely reiterated the original demand for detention charges by placing reliance upon generalized operational milestones, including the "Gate-Out Full" status and the expiry of the stipulated free time, without addressing the Complainant's specific contention that the subject containers continued to remain within the Port Liberty Centralized Examination Station (**CES**) and were not commercially available for retrieval or return during the subsistence of the mandatory Customs examination.

79. The Respondents further failed to identify any specific provision contained in the applicable tariff, the House Bill of Lading, the governing contractual terms, the Shipping Act, or the regulations of the Federal Maritime Commission which expressly authorised the assessment and continued demand of detention charges during the period in which the subject containers remained under the exclusive custody and operational control of the United States Customs and Border Protection ("**CBP**"). The Complainant's repeated requests for clarification in this regard remained substantially unanswered.

80. The Complainant further submits that, notwithstanding its *bonafide* attempt to preserve the longstanding commercial relationship between the parties by extending, on a without prejudice and without admission of liability basis, a one-time commercial settlement proposal through its communication dated **18 June 2026**, the Respondents neither meaningfully engaged with the said proposal nor undertook any objective reconsideration of the factual and legal issues repeatedly brought to their notice, but instead continued to insist upon payment of the impugned detention charges.

81. The Respondents' failure to establish, observe and enforce a fair, transparent and meaningful practice for evaluating and resolving the Complainant's dispute concerning the impugned detention charges, despite the repeated production of contemporaneous documentary evidence and repeated requests for reconsideration, constitutes an unjust and unreasonable practice relating to the billing, administration and collection of charges connected with the receiving, handling, storing and delivery of property, thereby violating 46 U.S.C. § 41102(c) and rendering the Respondents liable for the reparations and other reliefs prayed for in the present Complaint.

VI.CAUSATION AND INJURY TO COMPLAINANT

82. The Complainant respectfully submits that the injuries, losses and prejudice suffered by it are the direct, natural and proximate consequence of the Respondents' acts, omissions and unjust and unreasonable practices complained of herein. Notwithstanding the Complainant having, at all

material times, complied with all applicable contractual, customs and regulatory requirements, furnished complete and accurate shipping and import documentation, cooperated fully with the authorities during the Customs examination process, and acted with utmost expedition in taking delivery of the cargo and returning the subject containers immediately upon their becoming commercially available, the Respondents wrongfully assessed, invoiced and continued to demand payment under Detention Invoice Nos. **NAIC1873057** and **NAIC1879457** in circumstances where the subject containers remained beyond the possession, custody and effective commercial control of the Complainant owing solely to a mandatory examination conducted by the United States Customs and Border Protection ("**CBP**"). The Respondents' continued insistence upon recovery of the impugned detention charges, despite repeated representations supported by contemporaneous documentary evidence establishing the true factual chronology, compelled the Complainant to expend considerable managerial time, effort and resources in contesting the unlawful demands, disrupted its ordinary commercial operations, exposed it to unwarranted financial liability, and unnecessarily jeopardized an otherwise longstanding commercial relationship between the parties. The aforesaid injuries were neither remote nor speculative, but flowed directly and foreseeably from the Respondents' failure to establish, observe and enforce just and reasonable practices in relation to the assessment, billing and continued demand of the impugned detention charges. The Complainant is, therefore, entitled to appropriate reparations and such further relief as this Commission may

deem just, equitable and proper under the Shipping Act of 1984, as amended.

VII. ALTERNATIVE DISPUTE RESOLUTION

83. That prior to instituting the present Complaint, the Complainant made sincere, *bonafide* and repeated efforts to resolve the present dispute amicably through direct negotiations and correspondence with the Respondents and the intermediaries involved in the subject shipments, including Pridel Logistics, Eagle Maritime Inc. and K.K. Logistics. Between **12 May 2026** and **30 June 2026**, the Complainant addressed several detailed representations supported by contemporaneous documentary evidence, including the Port Liberty CES Tracking Reports, Net-CHB Transmission Reports, Customs records and container movement details, requesting the Respondents to objectively reconsider and waive the impugned detention charges. The Complainant also, without prejudice and without admission of liability, extended a one-time commercial settlement proposal dated **18 June 2026** in the interest of preserving the longstanding commercial relationship between the parties and avoiding unnecessary litigation. However, despite the aforesaid efforts, the dispute could not be amicably resolved, leaving the Complainant with no efficacious alternative but to invoke the jurisdiction of this Commission. Nevertheless, the Complainant remains willing to participate in any mediation, settlement conference or other alternative dispute resolution process that this

Commission may consider appropriate, provided that such process is conducted without prejudice to the rights and contentions of the parties.

VIII. REQUEST FOR ORAL HEARING

84. The Complainant respectfully requests that this Commission be pleased to afford the parties an opportunity of an **Oral Hearing** for the adjudication of the issues arising in the present Complaint including any pre-hearing conferences, case management conferences or other proceedings, be permitted to be conducted through **Video Conferencing or such other secure remote electronic means as may be approved by this Commission**, inasmuch as the Complainant is appearing *pro-se* through its duly authorized representative, **Mr. Sanjeev Khokha**, who is based outside the territorial jurisdiction of the United States where the Commission ordinarily conducts its proceedings. The controversy involved in the present Complaint is predominantly documentary in nature and the Complainant undertakes to make available all documentary evidence, records and submissions in electronic form as may be directed by this Commission. The Complainant respectfully submits that permitting participation through Video Conferencing would facilitate the expeditious, efficient and cost-effective adjudication of the present proceedings without causing any prejudice whatsoever to the Respondents or affecting the fair determination of the issues involved.

IX. PRAYER FOR RELIEF

WHEREFORE, in view of the facts and circumstances set forth hereinabove, the Complainant most respectfully prays that this Federal Maritime Commission may graciously be pleased to:

- A. Hold, declare and determine that the Respondents have violated the provisions of **46 U.S.C. § 41102(c)** by failing to establish, observe and enforce just and reasonable regulations and practices relating to or connected with the receiving, handling, storing and delivering of the Complainant's property, as more particularly set forth in the present Complaint;
- B. Hold, declare and determine that Respondent No. 1, **CMA CGM (America) LLC**, has further violated the provisions of 46 U.S.C. § 41104(a)(14) by assessing, invoicing and continuing to demand detention charges that were not consistent with the requirements of the Shipping Act of 1984, as amended;
- C. Declare that the assessment, invoicing and continued demand of detention charges under Detention Invoice No. **NAIC1873057** pertaining to Container Nos. **TCNU6996440** and **CMAU8547004**, and Detention Invoice No. **NAIC1879457** pertaining to Container Nos. **BMOU6712452** and **TEMU6608436**, were unjust, unreasonable and contrary to the provisions of the Shipping Act of 1984, as amended, and the applicable regulations of the Federal Maritime Commission;

- D. Direct the Respondents No.1 to withdraw, cancel and permanently waive the aforesaid detention charges and all demands, invoices, claims or consequential liabilities arising therefrom;
- E. In the alternative, and to the extent that the Complainant is found to have paid any portion of the impugned detention charges during the pendency of these proceedings or otherwise, direct the Respondents to refund the same together with applicable pre-judgment and post-judgment interest at such rate as this Commission may deem fit and proper;
- F. Award to the Complainant such reparations, compensation and monetary relief as this Commission may determine to be just, equitable and appropriate under the Shipping Act of 1984, together with all consequential reliefs flowing therefrom;
- G. Award to the Complainant the costs of the present proceedings, including all permissible costs, fees and expenses incurred in prosecuting the present Complaint before this Commission;
- H. Grant such further, additional or other reliefs, whether legal, equitable or declaratory in nature, as this Commission may

deem just, proper and expedient in the facts and circumstances of the present case.

Dated: 27/June/2026

Respectfully Submitted

INDIA CONNECTION LLC

By:

Mr. Sanjeev Khokha

Authorized Representative

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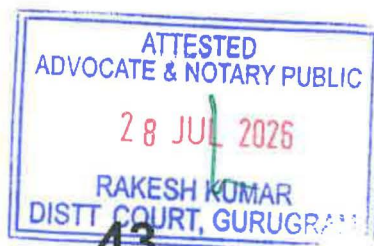
Email:

sanjeeev@indiaconnection.in

VERIFICATION

I, Mr. Sanjeev Khokha, being the duly authorized representative of India Connection LLC, the Complainant herein, do hereby declare and affirm under penalty of perjury that I have read and understood the contents of the foregoing Complaint in the lawsuit captioned as "*India Connection LLC v. CMA CGM (America) LLC & Pridel Private Limited*" and that the facts stated therein are true and correct to the best of my personal knowledge.

Dated: 27/June/2026



**BEFORE THE
FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

DOCKET NO.

THE INDIA CONNECTION LLC

COMPLAINANT,

v.

CMA CGM (AMERICA) LLC

RESPONDENT NO. 1,

PRIDEL PRIVATE LIMITED

RESPONDENT NO. 2.

EAGLE MARITIME OF AMERICA INC.

RESPONDENT NO. 3

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Dated: 27/June/2026

Respectfully Submitted

INDIA CONNECTION LLC

COMPLAINANT

represented *pro-se* by

Mr. Sanjeev Khokha

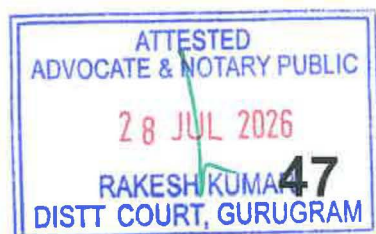
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**RESOLUTION BY THE MEMBERS/ PARTNERS
OF
INDIA CONNECTION LLC**

We, the undersigned, being all the Members of India Connection LLC, a Limited Liability Company duly organized and existing under the laws of the State of California, United States of America (the "Company"), having its principal office at 370 De Haro St Unit A1, San Francisco, California 94103, United States of America (USA) , do hereby unanimously consent and agree that the following Resolution is adopted by unanimous written consent in *lieu* of a meeting of the Members, pursuant to the applicable laws of the State of incorporation and the Operating Agreement of the Company.

This Resolution is made on this 21st day of July, 2026, at the Company's principal office situated at 370 De Haro St Unit A1, San Francisco, California 94103, United States of America (USA)

WHEREAS The Company is engaged in the business of importation, distribution and sale of goods within the United States of America and has, in the ordinary course of its business, imported certain shipments carried by CMA CGM (America) LLC under Bills of Lading bearing Nos. CAD0856129 and CAD0856323.

AND WHEREAS disputes have arisen regarding the assessment and recovery of detention charges by CMA CGM (America) LLC and Pridel Private Limited, which the Members believe to be unjust, unreasonable and contrary to the provisions of the Shipping Act of 1984 and the regulations administered by the Federal Maritime Commission.

AND WHEREAS the Members consider it necessary and expedient, in the best interests of the Company, to institute and prosecute appropriate proceedings before the Federal Maritime Commission for protection of the Company's legal and commercial interests.

NOW, THEREFORE, BE ~~IT~~48 UNANIMOUSLY

RESOLVED THAT:

Mr. Sanjeev Khokha, Director (Operations – Asia) of India Connection LLC, be and is hereby authorized, nominated and empowered to act as the Company's duly authorized representative for the purpose of instituting, prosecuting and conducting, on behalf of the Company, all proceedings before the Federal Maritime Commission, including but not limited to the proceedings titled:

“India Connection LLC v. CMA CGM (America) LLC and Pridel Private Limited”

or such other title or description as may be assigned by the Federal Maritime Commission.

Mr. Sanjeev Khokha is hereby specifically authorized to represent the Company *pro-se*, wherever permissible under the applicable laws, rules and regulations of the Federal Maritime Commission, and to undertake all acts, deeds and things necessary or incidental for the effective institution, prosecution, conduct and disposal of the proceedings. Without prejudice to the foregoing, Mr. Sanjeev Khokha is further authorized to appoint, engage, retain, instruct and/or substitute attorneys, advocates, counsel, consultants, agents or any other authorized representatives, as may be considered necessary or expedient, and to authorize any such person(s) to appear, act, plead, represent and prosecute the proceedings on behalf of the Company before the Federal Maritime Commission or before any other court, tribunal, authority or forum in connection therewith, and to execute all necessary documents, pleadings, affidavits, declarations, applications, authorizations, settlements, undertakings and other instruments for the said purpose.

Without prejudice to the generality of the foregoing authority, Mr. Sanjeev Khokha is authorized to:

- a) prepare, settle, execute, verify and file the Verified Complaint, Notice of Appearance, Verification, declarations, affidavits (where required), applications, motions, replies, rejoinders, written submissions, briefs, witness statements, exhibits, documentary compilations and every other pleading, document or paper that may be required in connection with the proceedings;
- b) sign, verify, affirm and execute all pleadings, statements and documents on behalf of the Company;

- c) correspond, communicate and negotiate with the Respondents, their representatives, the Federal Maritime Commission, its Administrative Law Judges, officers, employees and any other governmental authority or agency in relation to the said proceedings;
- d) submit documentary evidence, electronic records, correspondence, Bills of Lading, invoices, customs records, tracking reports, declarations and any other material considered necessary for proper adjudication of the dispute;
- e) appear before the Federal Maritime Commission, participate in case management conferences, hearings, status conferences, mediation or settlement conferences, whether conducted physically or by video conference or any other authorized electronic means;
- f) make statements of fact, answer procedural queries, advance submissions, present arguments, examine or cross-examine witnesses wherever permitted, and perform every procedural act incidental to or connected with the prosecution of the proceedings;
- g) negotiate, discuss and, where considered commercially appropriate, enter into settlement discussions or execute any settlement agreement, subject to such internal approvals as may be required by the Company;
- h) receive all notices, communications, pleadings, orders, decisions and other documents issued by the Federal Maritime Commission or any party to the proceedings;
- i) engage consultants, experts, translators or attorneys, if considered necessary at any stage of the proceedings, and to coordinate with them on behalf of the Company;
- j) do and perform every other lawful act, deed and thing which may be necessary, incidental or conducive for the effective prosecution, continuation, conduct, compromise, settlement or conclusion of the proceedings.

FURTHER RESOLVED THAT

All acts, deeds, filings, correspondence and actions

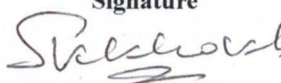
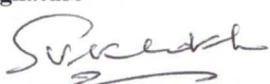
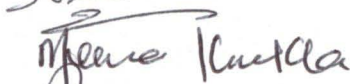
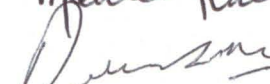
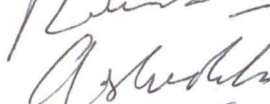
already undertaken by Mr. Sanjeev Khokha in relation to the aforesaid dispute, including the issuance of legal representations, exchange of correspondence with the Respondents, preparation of pleadings and all steps taken in contemplation of these proceedings, are hereby ratified, confirmed and approved in all respects.

This Resolution shall remain valid, binding and effective until the final conclusion of the proceedings, including any appeal, review, settlement or other ancillary proceedings arising therefrom, unless earlier modified or revoked by a subsequent Resolution of the Members.

Mr. Sanjeev Khokha is authorized to certify copies of this Resolution whenever required before the Federal Maritime Commission or any other authority.

UNANIMOUS WRITTEN CONSENT OF THE MEMBERS

We, the undersigned Members of India Connection LLC, hereby unanimously consent to and adopt the foregoing Resolution on this 21st day of July, 2026.

Member/Partner's Signature	Member/Partner's Name	Signature
	Surendra Kumar Khokha	
	Meena Khokha	
	Rajneesh Harbans Khokha	
	Asheesh Shanti Khokha	

APR 04 1997

ARTICLES OF ORGANIZATION
OF
THE INDIA CONNECTION, L.L.C.

Rebecca McDonald Cook
SECRETARY OF STATE

The undersigned hereby forms and establishes a limited liability company under the laws of the State of Missouri.

ARTICLE I

The name of the limited liability company is The India Connection, L.L.C.

ARTICLE II

The purposes for which the limited liability company is organized are the transaction of any lawful business for which a limited liability company may be organized under the Missouri Limited Liability Company Act.

ARTICLE III

The address of the limited liability company's registered agent in Missouri is 436 Sheffield Estates Drive, St. Louis, Missouri 63141, and the registered agent in charge thereof at such address is Surendra Khokha.

ARTICLE IV

The management of the limited liability company is vested in one or more managers.

ARTICLE V

The latest date on which the limited liability company shall dissolve is December 31, 2050.

ARTICLE VI

Upon an event of withdrawal of any member and under the terms of the Operating Agreement, the Company shall not be dissolved and the business shall continue.

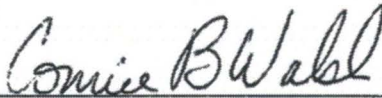
ARTICLE VII

The name and address of the organizer is Connie B. Walsh, 211 N. Broadway, Suite 3600, St. Louis, Missouri 63102.

ARTICLE VIII

For tax purposes, the limited liability company will be operating as a partnership.

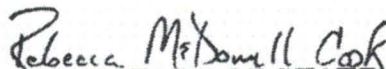
In affirmation thereof, the undersigned, does hereby declare that the facts herein stated are true, and accordingly has signed these Articles this 4th day of April, 1997.



Connie B. Walsh, Organizer

FILED

APR 04 1997


REBECCA McDOWELL COOK
SECRETARY OF STATE

STATE OF MISSOURI



Rebecca McDowell Cook
Secretary of State

CERTIFICATE OF ORGANIZATION
LIMITED LIABILITY COMPANY

WHEREAS,

THE INDIA CONNECTION, L.L.C.

FILED ITS ARTICLES OF ORGANIZATION WITH THIS OFFICE ON THE 4TH DAY OF APRIL, 1997, AND THAT FILING WAS FOUND TO CONFORM TO THE MISSOURI LIMITED LIABILITY COMPANY ACT;

NOW, THEREFORE, I, REBECCA MCDOWELL COOK, SECRETARY OF STATE, STATE OF MISSOURI, BY VIRTUE OF AUTHORITY VESTED IN ME BY LAW, DO CERTIFY AND DECLARE THAT ON THE 4TH DAY OF APRIL, 1997, THE ABOVE ENTITY IS A LIMITED LIABILITY COMPANY, ORGANIZED IN THIS STATE AND ENTITLED TO ANY RIGHTS GRANTED TO LIMITED LIABILITY COMPANIES.

IN TESTIMONY WHEREOF, I HAVE SET MY HAND AND IMPRINTED THE GREAT SEAL OF THE STATE OF MISSOURI, ON THIS, THE 4TH DAY OF APRIL, 1997.

Rebecca McDowell Cook
Secretary of State

\$105.00



FMC NO. 026636

Consignor M/S EXOTIC INDIA EXPORTS KHASRA NUMBER 167, DELHI ROAD VILLAGE DHAKIYA NEAR SAGAR RATNA AMROHA 244221 UP INDIA		BOOKING No. CAD0856129	SCAC PPLN	BL No. JPUSNYC10583
		EXPORT REFERENCES	SHIPPER'S REFERENCES	
		Point (State) of Origin / FTZ Number	CONSOLIDATION NUMBER	
CONSIGNEE (OR ORDER) THE INDIA CONNECTION LLC 436, SHEFFIELD ESTATE DRIVE, ST. LOUIS MO 63141, USA EMAIL: ASHEESH@INDIACONNECTION.COM, TEL.: 415-861-5678		FORWARDING AGENT		
NOTIFY PARTY/INTERMEDIATE CONSIGNEE W.N.EPSTEIN & CO., INC 230 S. BEMISTON AVE SUITE 540 ST LOUIS , MO. 63105 ATTN: DAWN WILCOX, PH: 314-429-0673 EXT 113 E-MAIL:- JEPSTEIN@WNEPSTEIN.COM		DELIVERY AGENT EGL MARITIME INC 1 NEWARK STREET, NO. 18, HOBOKEN, NJ 07030, TEL: 0012016100100, FAX: 0012016100200 +1 201 724 6553		
PRE-CARRIAGE BY BY ROAD	PLACE OF RECEIPT BY PRE-CARRIAGE MORADABAD-INDIA-INMOR	LOADING PIER/TERMINAL	TYPE OF MOVE CY_CY	
VESSEL/VOY. APL LE HAVRE - 0INLZW1MA	PORT OF LOADING MUNDRAINDIAINMUN	PORT OF DISCHARGE NEWYORKUSAUSNYC	PLACE OF DELIVERY NEWYORKUSAUSNYC	
PARTICULARS FURNISHED BY SHIPPER			WEIGHT. (Total)	MEASUREMENT (Total)
CONTAINER NUMBER / MARKS & NUMBERS : 2 CONTAINER SAID TO CONTAIN : 1725 CARTONS. DESCRIPTION : TOTAL 1725 CTNS (ONE THOUSAND SEVEN HUNDRED TWENTY-FIVE CARTONS ONLY) INDIAN ARTISTIC HANDICRAFTS OF IRON ARTWARES PO.NO.: 667771401, 667771402 H.S. CODE. 73269099, S.B. No. 9478785 DT.: 07.02.2026 QTY: 4600 PCS IEC.NO. # AAIFE6003H			GROSS WGT. 11845.000 KGS NET WGT. 8533.000 KGS	136.803 (CBM)
REFERENCES		Liability / Shippers Ad Valorem Option. The Carrier shall in no event be or become liable for any loss or damage to or in connection with the transportation of the Goods in an amount exceeding USD 500 per Package or customary freight or Container as provided on the reverse side here of, unless the nature and value of such goods have been declared by the Shipper before shipment and inserted below in this Bill of Lading and the Carriers ad valorem freight charge paid. Such declaration of value shall not, however, be conclusive on the Carrier for purposes of determining the extent of the Carriers liability. If the Shipper desires to have a valuation in excess of said USD 500 per Package or customary freight unit or Container or any applicable limitation, the Shipper must so stipulate such value in this Bill of Lading below and such additional limit will be assumed by the Carrier only upon payment of the Carriers ad valorem freight charge. Declared Cargo Value USD		
DESCRIPTION OF CHARGES	PREPAID	COLLECT	In accepting this bill of lading, any local customs or privileges to the contrary notwithstanding, the shipper, consignee and owner of the goods and the holder of this bill of lading, agree to be bound by all the stipulations, exceptions and conditions stated herein whether written, printed, stamped or incorporated on the front or reverse side hereof, as fully as if they were all signed by such shipper, consignee, owner or holder. If negotiable, Carrier requires this bill of lading duly endorsed be surrendered in exchange for the Goods or delivery order. If non - negotiable this bill of lading duly endorsed must be surrendered in exchange for the Goods or delivery order, if required by the Carrier. In witness whereof three (3) bills of lading, all of the tenor and date have been signed, one of which being accomplished, the others to stand void. If negotiable, Carrier requires this bill of lading duly endorsed be surrendered in exchange for the Goods or delivery order. If non - negotiable this bill of lading duly endorsed must be surrendered in exchange for the Goods or delivery order if required by the Carrier.	
TOTAL:			Place: JAIPUR	Date: 18 Feb 2026

Description (Cont) :
BL Continuation

INV. No. EE132-25 DT.: 12.01.2026

FREIGHT COLLECT

ALSO NOTIFY
BURLINGTON COAT FACTORY WAREHOUSE
CORPORATION
1830 ROUTE 130 NORTH
BURLINGTON, NJ 08016, U.S.A

SHIPPED ON BOARD
18.02.2026

Shipper's Load, Stow, Weight and Count

Container No.	Container Type.	Line Seal No.	Custom Seal No.	Gross Wgt.	Net Wgt.	Measurement	Package Detail
CMAU8547004	40' HQ	M5480744	ENOS02423715	7612.000	5422.000	68.178	705 CARTONS
TCNU6996440	40' HQ	M5480745	ENOS02423748	4233.000	3111.000	68.625	1020 CARTONS

SEAWAY

FMC NO. 026636

Consignor ICON INTERNATIONAL PANDIT NAGLA BY-PASS NEAR RAILWAY CROSSING MORADABAD 244001 (U.P.) INDIA		BOOKING No. CAD0856323	SCAC PPLN	BL No. JPUSNYC10595
		EXPORT REFERENCES		SHIPPER'S REFERENCES
		Point (State) of Origin / FTZ Number		CONSOLIDATION NUMBER
CONSIGNEE (OR ORDER) THE INDIA CONNECTION LLC 436, SHEFFIELD ESTATE DRIVE, ST. LOUIS MO 63141, USA EMAIL: ASHEESH@INDIACONNECTION.COM, TEL.: 415-861-5678		FORWARDING AGENT		
NOTIFY PARTY/INTERMEDIATE CONSIGNEE W.N.EPSTEIN & CO., INC 230 S. BEMISTON AVE SUITE 540 ST LOUIS , MO. 63105 ATTN: DAWN WILCOX,PH: 314-429-0673 EXT 113 E-MAIL:- JEPSTEIN@WNEPSTEIN.COM		DELIVERY AGENT EGL MARITIME INC 1 NEWARK STREET, NO. 18, HOBOKEN, NJ 07030, TEL: 0012016100100, FAX: 0012016100200 +1 201 724 6553		
PRE-CARRIAGE BY BY ROAD	PLACE OF RECEIPT BY PRE-CARRIAGE MORADABAD-INDIA-INMOR	LOADING PIER/TERMINAL	TYPE OF MOVE CY_CY	
VESSEL/VOY. APL LE HAVRE - 0INLZW1MA	PORT OF LOADING MUNDRAINDIAINMUN	PORT OF DISCHARGE NEWYORKUSAUSNYC	PLACE OF DELIVERY NEWYORKUSAUSNYC	
PARTICULARS FURNISHED BY SHIPPER			WEIGHT. (Total)	MEASUREMENT (Total)
CONTAINER NUMBER / MARKS & NUMBERS : 2 CONTAINER SAID TO CONTAIN : 1794 . DESCRIPTION : TOTAL 1794 CARTONS COMMODITY DESCRIPTION : HANDICRAFT OF IRON ARTWARES QNTY.: 3172 PCS. INV.NO.:II-991/2025-26 DT. 06/02/2026 SB NO.: 9608517 dated 12/02/2026 PO NO.:667771501, 667771504, 667771506, 667771507, 667771508.			GROSS WGT. 8879.940 KGS NET WGT. 6052.080 KGS	135.221 (CBM)
REFERENCES		Liability / Shippers Ad Valorem Option. The Carrier shall in no event be or become liable for any loss or damage to or in connection with the transportation of the Goods in an amount exceeding USD 500 per Package or customary freight or Container as provided on the reverse side here of, unless the nature and value of such goods have been declared by the Shipper before shipment and inserted below in this Bill of Lading and the Carriers ad valorem freight charge paid. Such declaration of value shall not, however, be conclusive on the Carrier for purposes of determining the extent of the Carriers liability. If the Shipper desires to have a valuation in excess of said USD 500 per Package or customary freight unit or Container or any applicable limitation, the Shipper must so stipulate such value in this Bill of Lading below and such additional limit will be assumed by the Carrier only upon payment of the Carriers ad valorem freight charge. Declared Cargo Value USD		
DESCRIPTION OF CHARGES	PREPAID	COLLECT	In accepting this bill of lading, any local customs or privileges to the contrary notwithstanding, the shipper, consignee and owner of the goods and the holder of this bill of lading, agree to be bound by all the stipulations, exceptions and conditions stated herein whether written, printed, stamped or incorporated on the front or reverse side hereof, as fully as if they were all signed by such shipper, consignee, owner or holder. If negotiable, Carrier requires this bill of lading duly endorsed be surrendered in exchange for the Goods or delivery order. If non - negotiable this bill of lading duly endorsed must be surrendered in exchange for the Goods or delivery order, if required by the Carrier. In witness whereof three (3) bills of lading, all of the tenor and date have been signed, one of which being accomplished, the others to stand void. If negotiable, Carrier requires this bill of lading duly endorsed be surrendered in exchange for the Goods or delivery order. If non - negotiable this bill of lading duly endorsed must be surrendered in exchange for the Goods or delivery order if required by the Carrier.	
TOTAL:			Place: JAIPUR	Date: 18 Feb 2026

Description (Cont) :
BL Continuation

HS CODE : 73269099
TOTAL NET WT. 6052.080 KGS
TOTAL G WT :8879.940 KGS
IEC NO. 2902001096

FREIGHT COLLECT.

2ND NOTIFY PARTY :
BURLINGTON COAT FACTORY WAREHOUSE
CORPORATION
1830 ROUTE 130 NORTH
BURLINGTON, NJ 08016, U.S.A

SHIPPED ON BOARD
18.02.2026

Shipper's Load, Stow, Weight and Count

Container No.	Container Type.	Line Seal No.	Custom Seal No.	Gross Wgt.	Net Wgt.	Measurement	Package Detail
BMOU6712452	40' HQ	M5480627	WIND01893449	4268.200	2898.800	70.671	860
TEMU6608436	40' HQ	M5480628	WIND01893450	4611.740	3153.280	64.55	934

SEAWAY

CMA CGM (AMERICA) LLC
ONE CMA CGM WAY
NORFOLK--VA--23502
UNITED STATES
TEL:757-961-2100 FAX:877-634-8419
VAT NO. 223522528

EXHIBIT-E



Please use invoice number as reference with payment

Bill of Lading: CAD0856129 Booking Ref: CAD0856129

Customer: 0001688340/001

Your Ref:

INVOICE
NAIC1873057

COPY

Date: 04-MAY-2026

Invoice To: EAGLE MARITIME INC
Consignee: 1 NEWARK STREET 18
HOBOKEN--NJ--07030
UNITED STATES

Payable to: CMA CGM (AMERICA) LLC
ONE CMA CGM WAY
NORFOLK--VA--23502
UNITED STATES
TEL:757-961-2100 FAX:877-634-8419

VAT NO.:562454960

VAT NO.: 223522528

Invoiced By: Chaitali YERAGI

Voyage: 01NM0E1MA Local Voyage Ref: - Vessel: APL LE HAVRE Call Date: 06 APR 2026

Export Cargo Mode: Merchant Haulage

Place of Receipt: MORADABAD

Load Port: MUNDRA

Consignee: EAGLE MARITIME OF AMERICA INC.
1 NEWARK STREET #21

Import Cargo Mode: Merchant Haulage

Discharge Port: NEW YORK, NY

Place of Delivery: -

Notify: EAGLE MARITIME OF AMERICA INC.
1 NEWARK STREET #21

Quote Reference: -

Service Contract: 25-1287

You are in receipt of this invoice as the CONSIGNEE for the relevant shipment and an appropriate contractual party for whose account ocean transportation /storage /demurrage /detention was provided."

(C) Detention Import Charge

Container Number: CMAU8547004 Size/Type: 40HC 10Free Calendar Days Total billable days: 12 Calendar Days Last Free Date: 17 APR 2026

Tariff Type: Special Condition

Container Availability Date: 06-APR-26

Start Event Data: 08-APR-26 - Gate out Full - NEW YORK, NY - PORT LIBERTY NEW YORK-300 WESTERN AVE,STATEN ISLAND,NY,10303

Stop Event Data: 29-APR-26 - Gate in Empty - NEW YORK, NY -MAHER TERMINAL-1210 CORBIN ST,NEW YORK,NY,07201

From Date	To Date	Days	Type	Rate	Inv. Currency	Inv. Amount
18-APR-26	19-APR-26	2	Calendar	225.00	USD	450.00
20-APR-26	29-APR-26	10	Calendar	250.00	USD	2,500.00

Container Number: TCNU6996440 Size/Type: 40HC 10Free Calendar Days Total billable days: 12 Calendar Days Last Free Date: 17 APR 2026

Tariff Type: Special Condition

Container Availability Date: 06-APR-26

Start Event Data: 08-APR-26 - Gate out Full - NEW YORK, NY - PORT LIBERTY NEW YORK-300 WESTERN AVE,STATEN ISLAND,NY,10303

Stop Event Data: 29-APR-26 - Gate in Empty - NEW YORK, NY -MAHER TERMINAL-1210 CORBIN ST,NEW YORK,NY,07201

From Date	To Date	Days	Type	Rate	Inv. Currency	Inv. Amount
18-APR-26	19-APR-26	2	Calendar	225.00	USD	450.00
20-APR-26	29-APR-26	10	Calendar	250.00	USD	2,500.00

Currency Charge Totals

USD 5,900.00

Total 5,900.00

(C)For and on behalf of CMA - CGM
BOULEVARD JACQUES SAADE
4 QUAI D'ARENC
CEDEX 02
13235 MARSEILLE-FRANCE

FR72562024422 Carrier No. NACMA9642292

For wire transfers: ABA#021001088 ACH#022000020

Beneficiary: CMA CGM & ANL Securities BV

HSBC BANK USA NA

452 FIFTH AVE

NEW YORK

10018 UNITED STATES NY

Account Number.000279331 SWIFT:MRMDUS33

Total Amount Due: 5,900.00 USD

Payable by 04-MAY-26

Payment before delivery of Bill Of Lading(Export) or Containers(Import)

PLEASE SEE ANY SPECIAL PAYMENT NOTES AT THE BOTTOM OF THIS PAGE
Payment shall be made for full amount on or prior to due date, free of charges, without any deduction nor discount for advance payment. All bank charges are for the account of the payer-remitter. Checks will no longer be accepted after June 30,2023.

This invoice is issued in accordance with FMC D&D rules, including but not limited to 46 CFR 541 and 46 CFR 545.5, based on the information available to Carrier as of the date of this invoice. Carrier's performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice.

CMA CGM (AMERICA) LLC
ONE CMA CGM WAY
NORFOLK--VA--23502
UNITED STATES
TEL:757-961-2100 FAX:877-634-8419
VAT NO. 223522528



Please use invoice number as reference with payment

Bill of Lading: CAD0856129 Booking Ref: CAD0856129

Customer: 0001688340/001

Your Ref:

INVOICE
NAIC1873057

Date: 04-MAY-2026

COPY

Dispute Resolution Guidance: <https://www.cma-cgm.com/local/united-states/detention-and-demurrage>. CMA's D&D Tariff is published under CMDU100, 200 & 300.

Service Contract D&D terms & conditions are in Term 101, the boilerplate, and/or customer's specified section.

Disputes must be sent to usa.disputes@usa.cma-cgm.com, through "Invoice dashboard" or My Customer Service portal, both available at www.cma-cgm.com, within 30 days of invoice date. Carrier will make its best efforts to resolve a dispute within 30 days.

To the best of our knowledge, you serve as the ultimate recipient of the cargo, which is the reason you're receiving this invoice. If you are not the ultimate recipient of the cargo, you must advise usa.disputes@cma-cgm.com within 48 hours of receipt of this invoice the name and contact details (including email and postal address) of the party who serves as ultimate recipient so that we may invoice accordingly.

(C)For and on behalf of CMA - CGM
BOULEVARD JACQUES SAADE
4 QUAI D'ARENCE
CEDEX 02
13235 MARSEILLE-FRANCE
FR72562024422

Carrier No. NACMA9642292

For wire transfers: ABA#021001088 ACH#022000020
Beneficiary: CMA CGM & ANL Securities BV
HSBC BANK USA NA
452 FIFTH AVE
NEW YORK
10018 UNITED STATES NY
Account Number.000279331 SWIFT:MRMDUS33

Total Amount Due: 5,900.00 USD

Payable by 04-MAY-26

Payment before delivery of Bill Of Lading(Export) or Containers(Import)

PLEASE SEE ANY SPECIAL PAYMENT NOTES AT THE BOTTOM OF THIS PAGE
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This invoice is issued in accordance with FMC D&D rules, including but not limited to 46 CFR 541 and 46 CFR 545.5, based on the information available to Carrier as of the date of this invoice. Carrier's performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice.

CMA CGM (AMERICA) LLC
ONE CMA CGM WAY
NORFOLK--VA--23502
UNITED STATES
TEL:757-961-2100 FAX:877-634-8419
VAT NO. 223522528

EXHIBIT-F



Please use invoice number as reference with payment

Bill of Lading: CAD0856323 Booking Ref: CAD0856323

Customer: 0001688340/001

Your Ref:

INVOICE
NAIC1879457

COPY

Date: 06-MAY-2026

Invoice To: EAGLE MARITIME INC
Consignee: 1 NEWARK STREET 18
HOBOKEN--NJ--07030
UNITED STATES

Payable to: CMA CGM (AMERICA) LLC
ONE CMA CGM WAY
NORFOLK--VA--23502
UNITED STATES
TEL:757-961-2100 FAX:877-634-8419

VAT NO.:562454960

VAT NO.: 223522528

Invoiced By: Sairaj CHALKE

Voyage: 01NM0E1MA Local Voyage Ref: - Vessel: APL LE HAVRE Call Date: 06 APR 2026

Export Cargo Mode: Merchant Haulage

Place of Receipt: -

Load Port: MUNDRA

Consignee: EAGLE MARITIME OF AMERICA INC.
1 NEWARK STREET #21

Import Cargo Mode: Merchant Haulage

Discharge Port: NEW YORK, NY

Place of Delivery: -

Notify: EAGLE MARITIME OF AMERICA INC.
1 NEWARK STREET #21

Quote Reference: -

Service Contract: 25-1287

You are in receipt of this invoice as the CONSIGNEE for the relevant shipment and an appropriate contractual party for whose account ocean transportation /storage /demurrage /detention was provided."

(C) Detention Import Charge

Container Number: BMOU6712452 Size/Type: 40HC 10Free Calendar Days Total billable days: 17 Calendar Days Last Free Date: 17 APR 2026

Tariff Type: Special Condition

Container Availability Date: 06-APR-26

Start Event Data: 08-APR-26 - Gate out Full - NEW YORK, NY - PORT LIBERTY NEW YORK-300 WESTERN AVE,STATEN ISLAND,NY,10303

Stop Event Data: 04-MAY-26 - Gate in Empty - NEW YORK, NY -MAHER TERMINAL-1210 CORBIN ST,NEW YORK,NY,07201

From Date	To Date	Days	Type	Rate	Inv. Currency	Inv. Amount
18-APR-26	19-APR-26	2	Calendar	225.00	USD	450.00
20-APR-26	04-MAY-26	15	Calendar	250.00	USD	3,750.00

Container Number: TEMU6608436 Size/Type: 40HC 10Free Calendar Days Total billable days: 14 Calendar Days Last Free Date: 17 APR 2026

Tariff Type: Special Condition

Container Availability Date: 06-APR-26

Start Event Data: 08-APR-26 - Gate out Full - NEW YORK, NY - PORT LIBERTY NEW YORK-300 WESTERN AVE,STATEN ISLAND,NY,10303

Stop Event Data: 01-MAY-26 - Gate in Empty - NEW YORK, NY -MAHER TERMINAL-1210 CORBIN ST,NEW YORK,NY,07201

From Date	To Date	Days	Type	Rate	Inv. Currency	Inv. Amount
18-APR-26	19-APR-26	2	Calendar	225.00	USD	450.00
20-APR-26	01-MAY-26	12	Calendar	250.00	USD	3,000.00

Currency Charge Totals

USD 7,650.00

Total 7,650.00

(C)For and on behalf of CMA - CGM

BOULEVARD JACQUES SAADE

4 QUAI D'ARENC

CEDEX 02

13235 MARSEILLE-FRANCE

FR72562024422

Carrier No. NACMA9650853

For wire transfers: ABA#021001088 ACH#022000020

Beneficiary: CMA CGM & ANL Securities BV

HSBC BANK USA NA

452 FIFTH AVE

NEW YORK

10018 UNITED STATES NY

Account Number.000279331 SWIFT:MRMDUS33

Total Amount Due: 7,650.00 USD

Payable by 06-MAY-26

Payment before delivery of Bill Of Lading(Export) or Containers(Import)

PLEASE SEE ANY SPECIAL PAYMENT NOTES AT THE BOTTOM OF THIS PAGE
Payment shall be made for full amount on or prior to due date, free of charges, without any deduction nor discount for advance payment. All bank charges are for the account of the payer-remitter. Checks will no longer be accepted after June 30,2023.

This invoice is issued in accordance with FMC D&D rules, including but not limited to 46 CFR 541 and 46 CFR 545.5, based on the information available to Carrier as of the date of this invoice. Carrier's performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice.

CMA CGM (AMERICA) LLC
ONE CMA CGM WAY
NORFOLK--VA--23502
UNITED STATES
TEL:757-961-2100 FAX:877-634-8419
VAT NO. 223522528



Please use invoice number as reference with payment

Bill of Lading: CAD0856323 Booking Ref: CAD0856323

Customer: 0001688340/001

Your Ref:

INVOICE
NAIC1879457

Date: 06-MAY-2026

COPY

Dispute Resolution Guidance: <https://www.cma-cgm.com/local/united-states/detention-and-demurrage>. CMA's D&D Tariff is published under CMDU100, 200 & 300.

Service Contract D&D terms & conditions are in Term 101, the boilerplate, and/or customer's specified section.

Disputes must be sent to usa.disputes@usa.cma-cgm.com, through "Invoice dashboard" or My Customer Service portal, both available at www.cma-cgm.com, within 30 days of invoice date. Carrier will make its best efforts to resolve a dispute within 30 days.

To the best of our knowledge, you serve as the ultimate recipient of the cargo, which is the reason you're receiving this invoice. If you are not the ultimate recipient of the cargo, you must advise usa.disputes@cma-cgm.com within 48 hours of receipt of this invoice the name and contact details (including email and postal address) of the party who serves as ultimate recipient so that we may invoice accordingly.

(C)For and on behalf of CMA - CGM

BOULEVARD JACQUES SAADE

4 QUAI D'AREN

CEDEX 02

13235 MARSEILLE-FRANCE

FR72562024422

Carrier No. NACMA9650853

For wire transfers: ABA#021001088 ACH#022000020

Beneficiary: CMA CGM & ANL Securities BV

HSBC BANK USA NA

452 FIFTH AVE

NEW YORK

10018 UNITED STATES NY

Account Number.000279331 SWIFT:MRMDUS33

Total Amount Due:

7,650.00 USD

Payable by 06-MAY-26

Payment before delivery of Bill Of Lading(Export) or Containers(Import)

PLEASE SEE ANY SPECIAL PAYMENT NOTES AT THE BOTTOM OF THIS PAGE
Payment shall be made for full amount on or prior to due date, free of charges, without any deduction nor discount for advance payment. All bank charges are for the account of the payer-remitter. Checks will no longer be accepted after June 30,2023.

This invoice is issued in accordance with FMC D&D rules, including but not limited to 46 CFR 541 and 46 CFR 545.5, based on the information available to Carrier as of the date of this invoice. Carrier's performance did not cause or contribute to the charges invoiced herein based on the information available to Carrier as of the date of this invoice.



Container Availability

Container ▾

BMOU6712452

SEARCH

Container Details

Container:	BMOU6712452	Vessel:	APL LE HAVRE	Status:	Full Import	Freight Status:
Line:	CMA	Voyage:	999E	Size/Type:	40HQ	Exam Status:
Chassis:	-	Received:	04/08/2026	ISO:	4500	Line Status:
Genset:	-	Delivered:	04/29/2026	Cargo Type:	GC	Terminal Status:
		Delivery Mode:	Truck	Live Reefer:	No	

Carrier	GCT CES TRUCKERS	Gross Weight:	-
Gate Pass:	12786	Bill of Lading:	CAD0856323
Days In Yard:	22	Empty Return:	Yes
Free Days:	-	Customs Status:	-
Last Free Date:	-	Available for Pickup:	-

Charges

Planned Pickup:

06/01/2026



Charge Type	Amount	Days	Dates	Total Charges	Paid/Guar	Net Due	Notes
BLOCK AND BRACE	.00	-	-	70.00	70.00	.00	-
Chassis Flip	.00	-	-	90.00	90.00	.00	-
Chassis Usage	.00	0	-	770.00	770.00	.00	-

Charge Type	Amount	Days	Dates	Total Charges	Paid/Guar	Net Due	Notes
CET Exam	.00	-	-	1,100.00	1,100.00	.00	COMPLETED 04/23/2026 SEAL#
VACIS Exam	.00	-	-	550.00	550.00	.00	EXAMINED 04/10/2026

MAKE A PAYMENT

[Contact Technical Support](#)





Container Availability

Container ▾

CMAU8547004

SEARCH

Container Details

Container:	CMAU8547004	Vessel:	APL LE HAVRE	Status:	Full Import	Freight Status:
Line:	CMA	Voyage:	999E	Size/Type:	40HQ	Exam Status:
Chassis:	-	Received:	04/08/2026	ISO:	4500	Line Status:
Genset:	-	Delivered:	04/29/2026	Cargo Type:	GC	Terminal Status:
		Delivery Mode:	Truck	Live Reefer:	No	

Carrier	GCT CES TRUCKERS	Gross Weight:	-
Gate Pass:	12801	Bill of Lading:	CAD0856129
Days In Yard:	22	Empty Return:	Yes
Free Days:	-	Customs Status:	-
Last Free Date:	-	Available for Pickup:	-

Charges

Planned Pickup:

06/01/2026



Charge Type	Amount	Days	Dates	Total Charges	Paid/Guar	Net Due	Notes
BLOCK AND BRACE	.00	-	-	70.00	70.00	.00	-
Chassis Flip	.00	-	-	90.00	90.00	.00	-

Charge Type	Amount	Days	Dates	Total Charges	Paid/Guar	Net Due	Notes
Chassis Usage	.00	0	-	770.00	770.00	.00	-
CET Exam	.00	-	-	1,100.00	1,100.00	.00	COMPLETED 04/23/2026 SEAL#85689
VACIS Exam	.00	-	-	550.00	550.00	.00	EXAMINED 04/10/2026

[Support](#)
MAKE A PAYMENT



Container Availability

Container ▼

TCNU6996440

SEARCH

Container Details

Container: TCNU6996440

Vessel: APL LE
HAVRE

Status: Full Import

Freight
Status:

Line: CMA

Voyage: 999E

Size/Type: 40HQ

Exam
Status:

Chassis: -

Received: 04/08/2026

ISO: 4500

Line
Status:

Genset: -

Delivered: 04/24/2026

Cargo
Type: GCTerminal
Status:Delivery
Mode: Truck

Live Reefer: No

69

Carrier	GCT CES TRUCKERS	Gross Weight:	-
Gate Pass:	12793	Bill of Lading:	CAD0856129
Days In Yard:	17	Empty Return:	Yes
Free Days:	-	Customs Status:	-
Last Free Date:	-	Available for Pickup:	-

Charges

Planned Pickup:

06/01/2026



Charge Type	Amount	Days	Dates	Total Charges	Paid/Guar	Net Due	Notes
Chassis Flip	.00	-	-	90.00	90.00	.00	-
Chassis Usage	.00	0	-	595.00	595.00	.00	-
Demurrage	.00	0	-	880.00	880.00	.00	-

Charge Type	Amount	Days	Dates	Total Charges	Paid/Guar	Net Due	Notes
VACIS Exam	.00	-	-	550.00	550.00	.00	EXAMINED 04/10/20

MAKE A PAYMENT

[Contact Technical Support](#)





Container Availability

Container ▼

TEMU6608436

SEARCH

Container Details

Container:	TEMU6608436	Vessel:	APL LE HAVRE	Status:	Full Import	Freight Status:
Line:	CMA	Voyage:	999E	Size/Type:	40HQ	Exam Status:
Chassis:	-	Received:	04/08/2026	ISO:	4500	Line Status:
Genset:	-	Delivered:	04/24/2026	Cargo Type:	GC	Terminal Status:
		Delivery Mode:	Truck	Live Reefer:	No	

Carrier	GCT CES TRUCKERS	Gross Weight:	-
Gate Pass:	12788	Bill of Lading:	CAD0856323
Days In Yard:	17	Empty Return:	Yes
Free Days:	-	Customs Status:	-
Last Free Date:	-	Available for Pickup:	-

Charges

Planned Pickup:

06/01/2026



Charge Type	Amount	Days	Dates	Total Charges	Paid/Guar	Net Due	Notes
Chassis Flip	.00	-	-	90.00	90.00	.00	-
Chassis Usage	.00	0	-	595.00	595.00	.00	-
Demurrage	.00	0	-	880.00	880.00	.00	-

Charge Type	Amount	Days	Dates	Total Charges	Paid/Guar	Net Due	Notes
VACIS Exam	.00	-	-	550.00	550.00	.00	EXAMINED 04/10/20

MAKE A PAYMENT

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Transmission

Transmission Type	ACE Cargo/Manifest Query
Transmitted By	MaMik*071
Transmitted	Mon, 06/01/26 3:21 PM CDT

 Response ☐ Hide Complex Lines

Received: Mon, 06/01/26 3:23 PM CDT

Carrier: CMDU Vessel: APL LE HAVRE Voyage/Flight No: 0INM0 Arrival Date: 3/22/26

[Master B/L: CMDU CAD0856129]

Quantity: 1725 CTN

Bill Type: Master

ISF on File: Yes

MOT: Ocean

[2/11/26 08:16] Quantity 0: 3Z - BOL MATCHED TO ISF
 [2/13/26 02:11] Quantity 1,725: 69 - BILL ON FILE
 [2/13/26 02:53] Quantity 1,725: 54 - CARRIER BILL AMENDMENT - DELETE
 [2/13/26 02:53] Quantity 1,725: 55 - CARRIER BILL AMENDMENT - ADD
 [3/14/26 09:52] Quantity 1,725: 7H - NON-INTRUSIVE INSPECTION HOLD
 [3/14/26 09:54] Quantity 1,725: 1H - CBP HOLD AT PORT OF UNLADING OR D
 [3/14/26 09:56] Quantity 1,725: 1X - TRANSFER FOR EXAM
 [3/31/26 12:31] Quantity 1,725: 54 - CARRIER BILL AMENDMENT - DELETE
 [3/31/26 12:31] Quantity 1,725: 55 - CARRIER BILL AMENDMENT - ADD
 [4/02/26 09:47] Quantity 1,725: 1C - ENTER AND RELEASED GENERAL EXAM
 [4/05/26 05:20] 19: CONVEYANCE ARRIVAL
 [4/10/26 15:09] Quantity 1,725: 7I - NON-INTRUSIVE INSPECTION HOLD REM
 [4/22/26 10:55] Quantity 1,725: 1I - CBP HOLD REMOVED
 Manifested Port of Unlading/Import: 1001
 Actual Port of Unlading/Import: 1001
 Departure Port: 13841
 Departure Date: 4/07/26

DATE NOTIFIED OF VACIS EXAM (XRAY)

DATE NOTIFIED OF INTENSIVE EXAM

DATE CUSTOMS ENTERED NOTICE FOR TRSFR

DATE THE VACIS EXAM HOLD WAS REMOVED

DATE INTENSIVE EXAM HOLD REMOVED

Carrier: PPLN Vessel: APL LE HAVRE Voyage/Flight No: ZW1MA Arrival Date: 3/23/26

[Master B/L: CMDU CAD0856129 House B/L: PPLN JPUSNYC10583]

Quantity: 1725 PKG

Bill Type: House

ISF on File: Yes

MOT: Ocean

[2/10/26 05:15] Quantity 1,725: 69 - BILL ON FILE
 [2/11/26 08:16] Quantity 1,725: 3Z - BOL MATCHED TO ISF
 [2/13/26 02:11] Quantity 1,725: 1Y - MVOC-NVOCC BILL OF LADING MATCH
 [2/13/26 02:53] Quantity 1,725: 1Y - MVOC-NVOCC BILL OF LADING MATCH
 [3/14/26 09:52] Quantity 1,725: 7H - NON-INTRUSIVE INSPECTION HOLD
 [3/14/26 09:54] Quantity 1,725: 1H - CBP HOLD AT PORT OF UNLADING OR D
 [3/31/26 12:31] Quantity 1,725: 1Y - MVOC-NVOCC BILL OF LADING MATCH
 [4/05/26 05:20] 19: CONVEYANCE ARRIVAL
 [4/10/26 15:09] Quantity 1,725: 7I - NON-INTRUSIVE INSPECTION HOLD REM
 [4/22/26 10:55] Quantity 1,725: 1I - CBP HOLD REMOVED


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Transmission

Transmission Type	ACE Cargo/Manifest Query
Transmitted By	MaMik*071
Transmitted	Mon, 06/01/26 3:20 PM CDT

 Response ☐ Hide Complex Lines

Received: Mon, 06/01/26 3:22 PM CDT

Carrier: CMDU Vessel: APL LE HAVRE Voyage/Flight No: 0INM0 Arrival Date: 3/22/26

[Master B/L: CMDU CAD0856323]

Quantity: 1794 CTN

Bill Type: Master

ISF on File: Yes

MOT: Ocean

[2/13/26 02:11] Quantity 1,794: 69 - BILL ON FILE
 [2/13/26 02:53] Quantity 1,794: 54 - CARRIER BILL AMENDMENT - DELETE
 [2/13/26 02:53] Quantity 1,794: 55 - CARRIER BILL AMENDMENT - ADD
 [2/13/26 08:38] Quantity 0: 3Z - BOL MATCHED TO ISF
 [3/14/26 10:56] Quantity 1,794: 7H - NON-INTRUSIVE INSPECTION HOLD
 [3/14/26 10:59] Quantity 1,794: 1H - CBP HOLD AT PORT OF UNLADING OR D
 [3/14/26 11:01] Quantity 1,794: 1X - TRANSFER FOR EXAM
 [3/31/26 12:36] Quantity 1,794: 54 - CARRIER BILL AMENDMENT - DELETE
 [3/31/26 12:36] Quantity 1,794: 55 - CARRIER BILL AMENDMENT - ADD
 [4/05/26 05:20] 19: CONVEYANCE ARRIVAL
 [4/06/26 09:46] Quantity 1,794: 1C - ENTER AND RELEASED GENERAL EXAM
 [4/10/26 15:00] Quantity 1,794: 7I - NON-INTRUSIVE INSPECTION HOLD REM
 [4/22/26 11:02] Quantity 860: D3 - SEAL WIND01893449 EQ# BMOU6712452
 [4/22/26 11:02] Quantity 860: D3 - SEAL M5480627 EQ# BMOU6712452
 [4/22/26 11:02] Quantity 1,794: 1I - CBP HOLD REMOVED

DATE NOTIFIED OF VACIS EXAM (XRAY)

DATE NOTIFIED OF INTENSIVE EXAM

DATE CUSTOMS ENTERED NOTICE FOR TRSFR

DATE THE VACIS EXAM HOLD WAS REMOVED

DATE INTENSIVE EXAM HOLD REMOVED

Manifested Port of Unlading/Import: 1001

Actual Port of Unlading/Import: 1001

Departure Port: 13841

Departure Date: 4/07/26

Carrier: PPLN Vessel: APL LE HAVRE Voyage/Flight No: ZW1MA Arrival Date: 3/23/26

[Master B/L: CMDU CAD0856323 House B/L: PPLN JPUSNYC10595]

Quantity: 1794 PKG

Bill Type: House

ISF on File: Yes

MOT: Ocean

[2/12/26 07:20] Quantity 1,794: 69 - BILL ON FILE
 [2/13/26 02:11] Quantity 1,794: 1Y - MVOC-NVOCC BILL OF LADING MATCH
 [2/13/26 02:53] Quantity 1,794: 1Y - MVOC-NVOCC BILL OF LADING MATCH
 [2/13/26 08:38] Quantity 1,794: 3Z - BOL MATCHED TO ISF
 [3/14/26 10:56] Quantity 1,794: 7H - NON-INTRUSIVE INSPECTION HOLD
 [3/14/26 10:59] Quantity 1,794: 1H - CBP HOLD AT PORT OF UNLADING OR D
 [3/31/26 12:36] Quantity 1,794: 1Y - MVOC-NVOCC BILL OF LADING MATCH
 [4/05/26 05:20] 19: CONVEYANCE ARRIVAL
 [4/10/26 15:00] Quantity 1,794: 7I - NON-INTRUSIVE INSPECTION HOLD REM
 [4/22/26 11:02] Quantity 1,794: 1I - CBP HOLD REMOVED

Evelyn Solis

2:56 PM (2
minutes
ago)

to me, Customer, ces-ny

Good day,

Due to the high volume of examinations currently being conducted within our warehouse, along with ongoing special operations by CBP, there are delays in the scheduling and completion of exams.

Please be assured that we are working diligently with CBP to coordinate and schedule examinations. All updates will be posted to our website as soon as cargo is scheduled for unloading and examination status changes.

We sincerely apologize for the delay and any inconvenience this may cause. Kindly continue to monitor the website for the most up-to-date status information.

Due to the large volume of emails requesting updates, we kindly ask that you refrain from emailing for the status update and instead check the website.

Website Instructions

<https://ces.portlibertynewyork.com/>

Before logging in to view container availability and exam status, please take a few moments to review the main page. It provides important information regarding:

- Exam schedules and when Customs removes holds
- Contact information
- Pick-up address and hours of operation
- Payment options
- Chassis flip cut-off times

Please note:

- **Freight releases are only updated by the line on the website.**
- **Port Liberty CES does not generate invoices. All charges are listed directly on the website.**

To Make a Payment

1. Go to <https://ces.portlibertynewyork.com/>
2. On the main page, click **“Access Status and Charges.”**
3. Enter the **container number** in the search box and click **Search.**
4. **If paying through the same day, click all open items (boxes).**
5. Click **Make Payment.**

6. Under **Select a Port Liberty Vendor**, choose **Port Liberty New York**.
 7. Enter the **container number**.
 8. **Select the Payment Date** and then confirm.
 - If paying for a future date, be sure to enter the actual payment date before confirming.
 - Click Next
 - Enter your username and password or create an account then and submit payment
 9. Be sure to **print a copy of your receipt** at the end of your transaction.
-

Important Reminders

- **Pickups at the CES follow the same procedure as terminal pickups – drivers must arrive with their own chassis.**
- **D.O. not required.**
- **Cut-off time for chassis flips: 3:30 PM**

Pick-up Location:
Port Liberty CES
241 Western Avenue
Staten Island, NY 10303

ops2@indiaconnection.in

From: jha@indiaconnection.in
Sent: 12 May 2026 11:48
To: custsvc@eglmartime.com
Cc: 'Naved Khan'; 'Shipping1 India'; 'Shipping India'; 'Sanjeev Khokha'; 'Ranveer - Ops1'; 'ops2'; 'Asheesh Khokha'
Subject: RE: FW: EGL REF# 76052- RE: Arrival notice / CMDUCAD0856323 / PPLNJPUSNYC10595 / India Connection (4260530)
Attachments: 76052- CMA Detention Invoice NAIC1879457.pdf

Dear Devki,

These containers were held by U.S. Customs for examination. Since the containers were under U.S. Customs hold, the shipping line should not charge detention for this period.

I have written to forwarder to check with CMA for the waiver of the detention charges , please check at your end also with CMA .

Best Regards

S. N. Jha
The India Connection

jha@indiaconnection.in

From: Devki Bhatt <custsvc@eglmartime.com>
Sent: 26 May 2026 22:13
To: 'CCA - Disputes'
Cc: vineet@pridel.com; usa.impcsv@usa.cma-cgm.com; salessupport@eglmartime.com; jha@indiaconnection.in; 'Asheesh Khokha'
Subject: RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129

Good day!

Thank you for your reply and notes.

We have added Consignee concerned to check and revert:

RIC: Mr Jha (The India Connection)

Kindly go through following reply received from Liner and revert at earliest.

Thank you.

With best regards,
Devki Bhatt
D: + 1 201 373 2194
P: + 1 201 627 0033 (Ext. 104)
F: + 1 201 630 0068
D: + 91 9619628598 (WhatsApp)
Skype: live: c27ecbc180b9de6a



Eagle Maritime of America Inc.
1 Newark Street #21 Hoboken NJ 07030
FMC | WCA | CT-PAT | CNS-IATA



From: CCA - Disputes <usa.disputes@usa.cma-cgm.com>
Sent: Tuesday, May 26, 2026 11:44 AM
To: custsvc@eglmartime.com
Cc: vineet@pridel.com; usa.impcsv@usa.cma-cgm.com; salessupport@eglmartime.com
Subject: RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129

Good day dear customer.
Hope you're having a great day.

After reviewing your dispute on invoice NAIC1879457, we've reached the following remarks:

Invoice NAIC1879457, under booking CAD0856323, is billing impot detention charges on unit BMOU6712452 and TEMU6608436, this was outgated full on 04/08/26 and returned empty on

05/04/26, as client had 10 free calendar days, your LFD was 04/17/26, as unit ingated after free time expired, charges were generated.

Detention charges will be levied when the Customer holds CMA CGM equipment outside the terminal longer than the agreed free time: it is applicable throughout the duration of Customer’s possession of CMA CGM container(s) in his custody, and until its safe return to CMA CGM.

Please also note this is a merchant haulage move, Merchant haulage refers to the situation where the customer (the "merchant") is responsible for arranging the inland transportation of the container once it is picked up from or delivered to the port or terminal. This means that the shipping line—such as CMA CGM—is only responsible for transporting the container by sea. The customer must coordinate with a trucking or rail company to move the container to or from the final inland location.

Under merchant haulage, the customer is also responsible for any associated costs, appointments, and ensuring the container is returned within the allowed free time to avoid detention or demurrage charges.

Please note that any discount request/consideration must be addressed directly with customer's sales rep/collector as disputes team can not grant any offer nor cancel/waive charges that are deemed as valid.

If client had any issue returning the unit to indicated location, please provide any documentation or email thread with CMA-CGM indicating this situation so we can check your case further.

We hope this clarifies the situation, and we are here to assist with any further questions or concerns you may have.

Thank you for your continued business and support.

Kind regards.



Sergio Vasquez
Dispute Analyst

Business website: www.cma-cgm.com
Group website: www.cmacgm-group.com



How are we performing right now?

		
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jha@indiaconnection.in

From: jha@indiaconnection.in
Sent: 02 June 2026 14:40
To: 'usa.disputes@usa.cma-cgm.com'; 'usa.impcsv@usa.cma-cgm.com'
Cc: 'custsvc@eglmaritime.com'; 'Naved Khan'; 'Asheesh Khokha'; 'Vineet Jain II Pridel Jaipur'; 'Amit Chaturvedi'; 'custsvc@eglmaritime.com'; 'ops2'
Subject: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057
Attachments: FEDERAL MARITIME COMMISSION.pdf; 76052- CMA Detention Invoice NAIC1879457.pdf; 76053- CMA INVOICE NAIC1873057.pdf; NetChb - Transmission CMDUCAD0856323.pdf; Port Liberty CES BMOU6712452.pdf; Port Liberty CES CMAU8547004.pdf; PORT LIBERTY CES REPLY 4-15-26.pdf; Port Liberty CES TCNU6996440.pdf; Port Liberty CES TEMU6608436.pdf; 323-4260477-7 3461.pdf; 323-4260530-3 3461.pdf; NetChb - Transmission CMDUCAD0856129.pdf

Kind Attn: CMA Dispute Team,

We completely disagree with your response that the detention charges were correctly generated.

As previously explained, the detention charges assessed are incorrect because the container was under a mandatory, government-ordered U.S. Customs Intensive Physical Examination at a Centralized Examination Station (CES).

For your reference and verification, please find attached the container-wise CES Tracking Reports for the following containers:

MBL # CAD0856323 (CMA Detention Invoice # NAIC1879457)

- **BMOU6712452**
- **TEMU6608436**

MBL # CAD0856129 (CMA Detention Invoice #NAIC1873057)

- **TCNU6996440**
- **CMAU8547004**

As Per Federal Maritime Commission (FMC) regulations and the Ocean Shipping Reform Act (OSRA) incentive principles, demurrage and detention charges cannot be applied during periods when the merchant is physically unable to access, retrieve, or return ocean equipment due to active government intervention.

Please see attached notification from FEDERAL MARITIME COMMISSION this is clearly mentioned that “Once the government hold released , contractual free time will commence”

The delay in completion of the examination was not caused by any action on the part of the consignee. As confirmed by PORT LIBERTY CES in its correspondence dated April 15, 2026, copy attached , the examination process was delayed due to the high volume of U.S. Customs examinations being handled by the facility. The containers remained under CBP-directed examination procedures and were unavailable for pickup, return, or cargo movement during the relevant period. Consequently, the consignee had no ability to influence or expedite the duration of the hold.

The attached CES records clearly prove that the delay resulted solely from a government-mandated examination process beyond the control of the consignee. Therefore, the detention charges assessed for the examination period should be cancelled in full.

We look forward to your favourable reconsideration and prompt resolution of this matter.

Thanking you,
Best Regards

S. N. Jha
The India Connection

ops2@indiaconnection.in

From: Devki Bhatt <custsvc@eglmartime.com>
Sent: 03 June 2026 00:11
To: usa.disputes@usa.cma-cgm.com; usa.impcsv@usa.cma-cgm.com
Cc: jha@indiaconnection.in; 'Naved Khan'; 'Asheesh Khokha'; 'Vineet Jain II Pridel Jaipur'; 'Amit Chaturvedi'; 'ops2'
Subject: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057
Attachments: FEDERAL MARITIME COMMISSION.pdf; 76052- CMA Detention Invoice NAIC1879457.pdf; 76053- CMA INVOICE NAIC1873057.pdf; NetChb - Transmission CMDUCAD0856323.pdf; Port Liberty CES BMOU6712452.pdf; Port Liberty CES CMAU8547004.pdf; PORT LIBERTY CES REPLY 4-15-26.pdf; Port Liberty CES TCNU6996440.pdf; Port Liberty CES TEMU6608436.pdf; 323-4260477-7 3461.pdf; 323-4260530-3 3461.pdf; NetChb - Transmission CMDUCAD0856129.pdf

Dear Team,

Refer below email, Exam site also informed Broker regarding LFD extension till the container clear Exam hold.

Shipment arrived on 08-Apr-2026 and LFD was 17-Apr-2026.

Hello All,

Same on this one.

I spoke with the exam site and have been advised that once the exams are done the total due will be on their site to be paid.

They also advised that they are backed up so the free time will be automatically extended until the exams are complete.

Thank you and have a great day/weekend.

Kim

Kimberly Malin
W.N. EPSTEIN & CO., INC.

230 S. Bemiston Ave. Suite 540

St Louis, MO. 63105

Kindly investigate all shipment details provided as attached and assist us to get waiver on the invoices, thank you.

With best regards,
Devki Bhatt
D: + 1 201 373 2194
P: + 1 201 627 0033 (Ext. 104)
F: + 1 201 630 0068
D: + 91 9619628598 (WhatsApp)
Skype: live: c27ecbc180b9de6a

jha@indiaconnection.in

From: jha@indiaconnection.in
Sent: 04 June 2026 16:06
To: 'usa.disputes@usa.cma-cgm.com'
Cc: 'vineet@pridel.com'; 'usa.impcsv@usa.cma-cgm.com';
'amitchaturvedi@kklogistics.net.in'; 'ops2@indiaconnection.in';
'asheesh@indiaconnection.com'; 'custsvc@eglmartime.com'; 'Naved Khan';
'Asheesh Khokha'; 'Sam Khokha'; 'Jerry Epstein'; 'custsvc@eglmartime.com'
Subject: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges-
MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and
NAIC1873057
Attachments: FEDERAL MARITIME COMMISSION.pdf; 76052- CMA Detention Invoice
NAIC1879457.pdf; 76053- CMA INVOICE NAIC1873057.pdf; NetChb - Transmission
CMDUCAD0856323.pdf; Port Liberty CES BMOU6712452.pdf; Port Liberty CES
CMAU8547004.pdf; PORT LIBERTY CES REPLY 4-15-26.pdf; Port Liberty CES
TCNU6996440.pdf; Port Liberty CES TEMU6608436.pdf; 323-4260477-7 3461.pdf;
323-4260530-3 3461.pdf; NetChb - Transmission CMDUCAD0856129.pdf

Dear Mr. Alberth and CMA CGM Disputes Team,

We have carefully reviewed your response but we however are unable to agree with the position taken therein. We therefore request a further review of the matter in light of the facts, supporting documentation, and applicable regulatory principles already placed on record.

At the outset, we would like to point out that our dispute was raised in respect of both detention invoices, viz. **Invoice No. NAIC1879457** under MBL No. CAD0856323 covering containers BMOU6712452 and TEMU6608436; and Invoice No. NAIC1873057 under MBL No. CAD0856129 covering containers TCNU6996440 and CMAU8547004.

However, your recent response addresses only Invoice No. NAIC1873057. No determination or explanation has been provided with respect to Invoice No. NAIC1879457. We therefore request CMA CGM to review and respond to both invoices comprehensively.

Further, our dispute has never been based on the mere existence of a Customs examination. Rather, the fundamental issue is that the subject containers were unavailable for normal cargo movement and equipment return due to a mandatory U.S. Customs and Border Protection (CBP) Intensive Examination conducted at a Centralized Examination Station (CES).

As demonstrated by the CES Tracking Reports and the correspondence issued by Port Liberty CES dated 15 April 2026, the containers remained under CBP-directed examination procedures and the examination process itself was delayed due to the exceptionally high volume of examinations being handled by the facility. During this period, the containers were effectively under government control and were not available for retrieval, unloading, movement, or return by the consignee. Consequently, the consignee had neither possession nor effective control over the containers and had no practical ability to influence, expedite, or mitigate the duration of the delay.

Significantly, in your email dated 03 June 2026, CMA CGM has itself acknowledged that the Containers remained under Customs Hold from 17 March 2026 until 22 April 2026. It is therefore undisputed that the containers continued to remain under an active government hold beyond the Last Free Day relied upon by CMA CGM while assessing detention charges.

In these circumstances, the assessment of detention charges raises a fundamental issue of fairness, causation, and regulatory compliance. Detention charges are intended to incentivize the timely return of equipment. However, where the equipment is unavailable for return due to a mandatory governmental examination and the merchant is legally and physically incapable of returning the containers, such charges cease to serve their intended purpose and instead become punitive in nature.

While we appreciate CMA CGM's reference to the Bill of Lading Terms and Conditions, we respectfully submit that contractual provisions must be applied reasonably and in a manner consistent with applicable regulatory principles. Importantly, at no stage has CMA CGM identified any delay, omission, negligence, non-compliance, or other default attributable to the consignee. To the contrary, all required customs documentation was submitted in a timely manner and the delays arose solely as a consequence of CBP-directed examination procedures and operational constraints at the CES facility.

We further note that despite repeated correspondence and the supporting documentation provided, CMA CGM has not identified any specific tariff provision, bill of lading clause, or regulatory authority expressly permitting detention charges to accrue during periods when the containers remained subject to active government examination and were unavailable for return by the merchant.

We have also previously shared relevant Federal Maritime Commission (FMC) guidance and principles established under the Ocean Shipping Reform Act (OSRA), which recognize that detention and demurrage charges should function as incentives for cargo movement and equipment return. Where cargo interests are prevented from accessing or returning equipment due to a government-imposed hold, such charges do not advance the stated purpose underlying detention and demurrage practices.

Accordingly, we respectfully request CMA CGM to reconsider its position and review the following containers for exclusion of all days during which they remained subject to CBP/CES examination procedures:

MBL No. CAD0856323

- **BMOU6712452**
- **TEMU6608436**

MBL No. CAD0856129

- **TCNU6996440**
- **CMAU8547004**

The documentary record clearly demonstrates that the delays were caused exclusively by a government-mandated examination process and were not attributable to any act, omission, delay, negligence, or fault on the part of the consignee.

In view of the above, we call upon you to do a full review of both detention invoices; cancel all detention charges assessed during the period of active CBP/CES examination and government hold; issue revised invoices reflecting the exclusion of such periods; and provide a detailed written explanation identifying the specific tariff provision, bill of lading clause, FMC authority, statutory provision, or other legal basis relied upon by CMA CGM in support of charging detention during periods when the containers were under active government examination and unavailable for return.

We value our long-standing business relationship with CMA CGM and sincerely hope that this matter can be resolved amicably, fairly, and in accordance with both applicable contractual provisions and governing regulatory principles. However, in the absence of a reasoned and justified resolution, we shall be constrained to evaluate and pursue such remedies as may be available before the appropriate regulatory authorities, including the Federal Maritime Commission (FMC), for an independent review of the detention charges assessed in the present matter.

We trust that CMA CGM will give this matter its careful reconsideration and we look forward to your prompt and favourable response.

Best Regards

S. N. Jha
The India Connection

jha@indiaconnection.in

From: CCA - Disputes <usa.disputes@usa.cma-cgm.com>
Sent: 05 June 2026 23:21
To: jha@indiaconnection.in
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057

Good day,

Thank you for your patience while we reviewed your dispute regarding Invoice NAIC1879457 under Booking CAD0856323.

After carefully reviewing the details, we understand your concern regarding the detention charges billed for containers BMOU6712452 and TEMU6608436, and we would like to provide some clarification.

Our records indicate that the containers were out-gated full on April 8, 2026, and returned empty on May 4, 2026. Based on the agreed terms, the shipment was entitled to 10 free calendar days, resulting in a Last Free Day (LFD) of April 17, 2026. Since the containers were returned after the free-time period had expired, detention charges were incurred and subsequently billed.

As a reminder, detention charges apply when CMA CGM equipment remains outside the terminal beyond the allotted free time. These charges accrue for the duration that the containers remain in the customer's possession until they are safely returned to CMA CGM.

We would also like to note that this shipment moved under merchant haulage terms. Under merchant haulage, the customer is responsible for arranging inland transportation, coordinating any required appointments, and ensuring the containers are returned within the agreed free-time period. As such, any detention charges resulting from late return of equipment remain the customer's responsibility.

We understand that operational challenges can sometimes arise. If there were any circumstances that prevented the timely return of the containers to the designated location, please share any supporting documentation or email correspondence with CMA CGM regarding those issues. We would be happy to review the information and reassess the case where applicable.

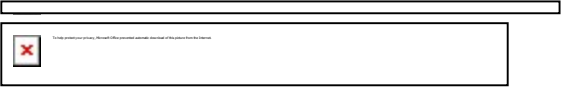
Please note that while our Disputes Team can validate or invalidate charges based on the applicable tariff and shipment records, we are unable to authorize discounts, waivers, or commercial adjustments on charges deemed valid. Should you wish to request a commercial consideration, we kindly recommend reaching out directly to your Sales Representative or Collector for further assistance.

We appreciate your understanding and your continued business. If you have any additional questions or supporting documents to provide, please do not hesitate to contact us. We remain available to assist you.

Regards,



Likita Shetty
Dispute Analyst
CMA CGM (America) LLC
Business website: www.cma-cgm.com
Group website: www.cmacgm-group.com



ops2@indiaconnection.in

From: Devki Bhatt <custsvc@eglmartime.com>
Sent: 09 June 2026 01:13
To: CCA - Disputes
Cc: 'Vineet Jain II Pridel Jaipur'; usa.impcsv@usa.cma-cgm.com; 'Amit Chaturvedi'; 'ops2'; 'Asheesh Khokha'; 'Naved Khan'; 'Asheesh Khokha'; 'Sam Khokha'; 'Jerry Epstein'
Subject: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057
Attachments: FEDERAL MARITIME COMMISSION.pdf; 76052- CMA Detention Invoice NAIC1879457.pdf; 76053- CMA INVOICE NAIC1873057.pdf; NetChb - Transmission CMDUCAD0856323.pdf; Port Liberty CES BMOU6712452.pdf; Port Liberty CES CMAU8547004.pdf; PORT LIBERTY CES REPLY 4-15-26.pdf; Port Liberty CES TCNU6996440.pdf; Port Liberty CES TEMU6608436.pdf; 323-4260477-7 3461.pdf; 323-4260530-3 3461.pdf; NetChb - Transmission CMDUCAD0856129.pdf

Dear Team,

Refer following given clarifications and attached documents, kindly advise further status of Waiver request.

We need to close the issue earliest possible, thank you.

With best regards,
Devki Bhatt
D: + 1 201 373 2194
P: + 1 201 627 0033 (Ext. 104)
F: + 1 201 630 0068
D: + 91 9619628598 (WhatsApp)
Skype: live: c27ecbc180b9de6a



Eagle Maritime of America Inc.
1 Newark Street #21 Hoboken NJ 07030
FMC | WCA | CT-PAT | CNS-IATA



ops2@indiaconnection.in

From: CCA - Disputes <usa.disputes@usa.cma-cgm.com>
Sent: 11 June 2026 18:41
To: custsvc@eglmaritime.com
Cc: jha@indiaconnection.in; vineet@pridel.com; usa.impcsv@usa.cma-cgm.com; amitchaturvedi@kklogistics.net.in; ops2@indiaconnection.in; asheesh@indiaconnection.com; rajiv@eglmaritime.com; salessupport@eglmaritime.com
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057

Hello Devki,

Thank you for contacting the Disputes Team.

We understand the importance of this matter and appreciate the opportunity to review your concerns carefully.

As a gesture of goodwill, we have already adjusted the billing to **Tier 1** until the hold was removed, rather than applying the higher tier charges.

Regarding your request for a free time extension until the container cleared the exam hold, we acknowledge receipt of the supporting documents you submitted and appreciate the effort you took to provide them. However, after review, we regret to inform you that the documentation currently provided is not sufficient for us to proceed with any further adjustment at this time.

Thank you for your understanding and cooperation.

BILL	INVOICE	INVOICE AMOUNT	DOLLAR AMOUNT TO REDUCE
CAD0856129	NAIC1873057	\$ 5,900	\$ 150

Regards,



Rayesh Thapa
 Dispute analyst

Business website: www.cma-cgm.com
 Group website: www.cmacgm-group.com

jha@indiaconnection.in

From: jha@indiaconnection.in
Sent: 11 June 2026 19:06
To: 'CCA - Disputes'; custsvc@eglmartime.com
Cc: jha@indiaconnection.in; vineet@pridel.com; usa.impcsv@usa.cma-cgm.com; amitchaturvedi@kklogistics.net.in; asheesh@indiaconnection.com; rajiv@eglmartime.com; salessupport@eglmartime.com; 'ops2'
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057

Kind Attn : CMA Disputes Team,

In the trailing email you have mentioned that supporting documentation provided is not sufficient to proceed with any further adjustment. Please advise which specific supporting documents or additional information are required for your review.

Once we receive your documents requirement , we will arrange to provide the necessary documentation accordingly.

Best Regards,

S. N. Jha
The India Connection

jha@indiaconnection.in

From: jha@indiaconnection.in
Sent: 12 June 2026 13:47
To: 'custsvc@eglmartime.com'
Cc: 'vineet@pridel.com'; 'amitchaturvedi@kklogistics.net.in';
'salessupport@eglmartime.com'; 'asheesh@indiaconnection.com'; 'ops2'
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057
Attachments: 76052- CMA Detention Invoice NAIC1879457.pdf; 76053- CMA INVOICE NAIC1873057.pdf; FEDERAL MARITIME COMMISSION.pdf

Dear Devki,

This is not fair that you are insisting to make payment for incorrectly charged invoices. You are well aware that these invoices were not generated in accordance with applicable Federal Maritime Commission (FMC) regulations.

A. The CMA CGM Dispute Team previously advised that **the Sales Team may be able to assist further in resolving this matter**. Why are you not reaching to sales team to resolve this matter amicably .

B. In their email, the CMA CGM Team stated that **"Any delays arising from customs processes, including inspections or holds that result in demurrage and/or detention charges, remain under the merchant's responsibility in accordance with CMA CGM Bill of Lading terms and conditions**. We do not have any such terms and conditions on the Bill of Lading issued to us and this is also illegal as per Federal Maritime Commission (FMC) regulations.

C. In their recent email, CMA CGM stated: **"However, after review, we regret to inform you that the documentation currently provided is not sufficient for us to proceed with any further adjustment at this time."** Kindly check with the CMA CGM Team and advise specifically which additional supporting documents are required. We will try to provide the requested documentation promptly.

In view of the above and based on the attached Federal Maritime Commission regulations, the invoices have been raised incorrectly. If CMA CGM will not resolve this matter fairly, we will have no alternative but to issue a formal notice to CMA CGM and file a complaint with the Federal Maritime Commission for review.

We look forward to your prompt assistance for amicable resolution.

Best Regards

S. N. Jha
The India Connection

jha@indiaconnection.in

From: jha@indiaconnection.in
Sent: 13 June 2026 12:53
To: 'CCA - Disputes'
Cc: 'jha@indiaconnection.in'; 'vineet@pridel.com'; 'amitchaturvedi@kklogistics.net.in'; 'asheesh@indiaconnection.com'; 'custsvc@eglmartime.com'; 'rajiv@eglmartime.com'; 'salessupport@eglmartime.com'; 'ops2'
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057
Attachments: FEDERAL MARITIME COMMISSION.pdf; 76052- CMA Detention Invoice NAIC1879457.pdf; 76053- CMA INVOICE NAIC1873057.pdf; NetChb - Transmission CMDUCAD0856323.pdf; Port Liberty CES BMOU6712452.pdf; Port Liberty CES CMAU8547004.pdf; PORT LIBERTY CES REPLY 4-15-26.pdf; Port Liberty CES TCNU6996440.pdf; Port Liberty CES TEMU6608436.pdf; 323-4260477-7 3461.pdf; 323-4260530-3 3461.pdf; NetChb - Transmission CMDUCAD0856129.pdf

Kind Attn : CMA Dispute Team,

Dear Bhavana,

We were not provided with any such documents by CMA CGM. The documents requested regarding free-time extensions are internal CMA CGM records and should be available from your own operational and customer service departments, please find the same from the relevant department within CMA CGM for review.

Our dispute is not based on any commercial approval from CMA CGM. Our dispute is based on the Federal Maritime Commission (FMC) laws and the incentive principles established under the Ocean Shipping Reform Act (OSRA), which provide that detention and demurrage charges should not be assessed during periods when cargo interests are unable to retrieve, utilize, or return equipment due to government-imposed holds or examinations beyond their control.

In fact the containers were under a mandatory U.S. Customs examination and remained unavailable to the consignee during the examination period, as evidenced by the CES tracking reports and supporting correspondence already submitted. Copy attached for your ready reference .

As all ocean carrier operating in the United States, CMA CGM is subject to FMC regulations and guidance in the same manner as other shipping lines. Accordingly the FMC principles should be apply in this case. Copy of Federal Maritime Commission (FMC) Order attached for your ready reference .

The documents already proves clearly that:

- A. The containers were under a government-mandated Customs examination.**
- B. The delay was caused by Customs/CES processes and not by any action or inaction of the consignee.**
- C. The consignee had no ability to access, utilize, or return the equipment during the examination period.**
- D. The Detention should not be charges as per Federal Maritime Commission (FMC) Law.**

In view of the above, we respectfully request CMA CGM to reconsider its position and review the dispute based on the evidence already submitted. If CMA CGM will not resolve this matter fairly, we will have no alternative but file a complaint with the Federal Maritime Commission for review.

We look forward to your favourable response and resolution of this matter.

Best Regards,

jha@indiaconnection.in

From: CCA - Disputes <usa.disputes@usa.cma-cgm.com>
Sent: 16 June 2026 21:24
To: jha@indiaconnection.in
Cc: jha@indiaconnection.in; vineet@pridel.com; amitchaturvedi@kklogistics.net.in; ops2@indiaconnection.in; asheesh@indiaconnection.com; custsvc@eglmartime.com; rajiv@eglmartime.com; salessupport@eglmartime.com
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057

Dear Mr. Jha,

Greetings from CMA CGM Disputes Team.

Thank you for your detailed response and for sharing the supporting documents.

We understand your concerns regarding the detention charges and appreciate the time taken to provide the information related to the U.S. Customs examination. We acknowledge that the containers were subject to a Customs examination and understand the challenges such processes may create for cargo interests.

However, after reviewing the information provided, we regret to inform you that we are unable to approve the dispute request at this time.

Please be advised that CMA CGM does not assume responsibility for charges incurred as a result of customs holds, inspections, examinations, or terminal congestion. In accordance with standard international shipping terms and conditions, any costs associated with these processes, including detention, demurrage, storage, and drayage charges, remain the responsibility of the importer or cargo owner.

Furthermore, we have not received any official CMA CGM authorization, written approval, or documented agreement confirming an extension of free time or Last Free Day (LFD) until completion of Customs clearance. In the absence of such supporting documentation, we are unable to grant the requested waiver of detention charges.

Should you possess any official CMA CGM document or written communication confirming an approved free-time extension applicable to these shipments, we would be pleased to review the matter further upon receipt.

We appreciate your understanding and remain available should you require any additional clarification.

jha@indiaconnection.in

From: jha@indiaconnection.in
Sent: 18 June 2026 11:11
To: 'CCA - Disputes'
Cc: 'vineet@pridel.com'; 'amitchaturvedi@kklogistics.net.in'; 'ops2@indiaconnection.in'; 'asheesh@indiaconnection.com'; 'custsvc@eglmaritime.com'; 'rajiv@eglmaritime.com'; 'salessupport@eglmaritime.com'
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057

WITHOUT PREJUDICE AND WITHOUT ADMISSION OF LIABILITY

Dear Mr. Deepak and CMA CGM Disputes Team,

We acknowledge receipt of your email dated June,16,2026 and note your position regarding the subject detention invoices. While we respectfully disagree with the conclusions reached by CMA CGM and maintain our position that the detention charges assessed during the period of active U.S. Customs and Border Protection (CBP) examination are unjustified, unsupported by the facts of this case, and inconsistent with the regulatory principles previously brought to your attention, we remain committed to resolving this matter in a practical and commercially sensible manner. As previously demonstrated through the CES Tracking Reports, Port Liberty CES correspondence, and CMA CGM's own acknowledgement that the subject containers remained under Customs Hold until Apr,22,2026, the delays in question arose solely due to a government-mandated examination process over which neither the consignee nor the cargo owner exercised any control.

We further note that despite our repeated requests, no specific tariff provision, bill of lading clause, FMC authority, or other legal basis has been identified which expressly authorizes the assessment of detention charges during periods when the containers remained under active government examination and were unavailable for return by the merchant.

Notwithstanding the foregoing, and without prejudice to our rights, contentions, claims, remedies, or legal position in any manner whatsoever, India Connection in the spirit of preserving its long-standing business relationship with CMA CGM and avoiding the time, expense, and inconvenience associated with escalation of this dispute before the Federal Maritime Commission (FMC) or any other competent forum and strictly as a gesture of commercial goodwill; in the interest of achieving an amicable resolution, offers to make a one-time settlement payment equivalent to 25% of the total amount claimed under the disputed detention invoices, subject to unequivocal acceptance by you to the said amount as full and final settlement of all claims arising from or relating to Detention Invoice Nos. NAIC1879457 and NAIC1873057.

This proposal shall not constitute an admission of liability, responsibility, or validity of the detention charges on the part of India Connection, whether in whole or in part. The proposal is being made bonafide and is solely communicated for commercial reasons and to avoid further dispute and no more.

This proposal is made entirely on a without prejudice basis and shall not be referred to, relied upon, or produced in any judicial, regulatory, arbitral, administrative, or other proceedings, except for the limited purpose of enforcing a mutually accepted settlement if arrived at.

We trust that CMA CGM will consider this proposal in the constructive spirit in which it is being made. In the event the proposal is not acceptable, India Connection reserves all rights and remedies available to it under applicable law and before the Federal Maritime Commission.

We look forward to receiving your response and sincerely hope that this matter can be concluded amicably and without the need for further proceedings.

Best Regards,

ops2@indiaconnection.in

From: CCA - Disputes <usa.disputes@usa.cma-cgm.com>
Sent: 19 June 2026 02:25
To: custsvc@eglmaritime.com
Cc: vineet@pridel.com; usa.impcsv@usa.cma-cgm.com;
amitchaturvedi@kklogistics.net.in; ops2@indiaconnection.in;
sam@indiaconnection.com; asheesh@indiaconnection.com;
jepstein@wnepstein.com; salessupport@eglmaritime.com
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057

Dear Customer,

Thank you for your detailed explanation and for sharing the supporting information. We truly understand your concern regarding the detention charges and the impact of customs examinations.

Upon careful review of the system records, we would like to highlight the following key timeline:

- **Customs Hold Applied:** 17-Mar-2026
- **Customs Hold Released:** 06-Apr-2026
- **Gate-Out Full:** 08-Apr-2026

This confirms that the containers were **released from customs and made available prior to gate-out**.

Further, **the containers remained under consignee custody from 08-Apr-2026 until their empty return (TEMU6608436: 01-May-2026 | BMOU6712452: 04-May-2026)**. As per merchant haulage terms, once gated out, the **responsibility for equipment, including timely return, lies with the consignee**.

With **LFD as 17-Apr-2026**, and returns completed after expiry of free time, detention has been applied from **18-Apr-2026 onwards**, in line with tariff provisions.

While we acknowledge the challenges posed by customs examinations, the **customs hold was lifted prior to container pickup**, and therefore did not restrict usage or return of equipment during the free time period.

Based on the above, we regret that we are unable to approve the waiver request, and the charges remain **valid and payable as invoiced**.

We sincerely appreciate your understanding and cooperation. Please feel free to reach out should you need any further clarification.

Regards,

By using our online platform you can streamline your dispute submissions in MyCS, enjoy faster

jha@indiaconnection.in

From: jha@indiaconnection.in
Sent: 20 June 2026 11:11
To: 'CCA - Disputes'
Cc: 'vineet@pridel.com'; 'usa.impcsv@usa.cma-cgm.com';
'amitchaturvedi@kklogistics.net.in'; 'sam@indiaconnection.com';
'asheesh@indiaconnection.com'; 'jepstein@wnepstein.com';
'salessupport@eglmartime.com'; 'ops2'; 'custsvc@eglmartime.com'; 'ops2'
Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057
Attachments: 76052- CMA Detention Invoice NAIC1879457.pdf; 76053- CMA INVOICE NAIC1873057.pdf; FEDERAL MARITIME COMMISSION.pdf; NetChb - Transmission CMDUCAD0856129.pdf; NetChb - Transmission CMDUCAD0856323.pdf; Port Liberty CES BMOU6712452.pdf; Port Liberty CES CMAU8547004.pdf; PORT LIBERTY CES REPLY 4-15-26.pdf; Port Liberty CES TCNU6996440.pdf; Port Liberty CES TEMU6608436.pdf

Dear CMA CGM Disputes Team,

We acknowledge receipt of your email dated 19 June 2026.

At the outset, we note with concern that your response neither addresses nor acknowledges our detailed communication dated 18 June 2026, wherein we had, without prejudice to our rights and contentions, proposed an amicable commercial resolution of the dispute. Instead, your response appears to be based upon an incomplete and factually inaccurate understanding of the chronology of events relating to the subject containers.

More significantly, the factual timeline relied upon by CMA CGM is inconsistent with the documentary evidence previously furnished by us, including the NetCHB Transmission Reports issued by U.S. Customs and Border Protection, the Port Liberty CES Tracking Reports, and other supporting records. Your conclusion that the containers were freely available to the merchant upon the purported release of customs hold is not supported by the actual movement and examination records relating to the subject shipments.

For the avoidance of doubt, the issue under dispute is not merely the date on which an internal customs hold status may have been updated in a system. The material question is the date on which the containers were actually released from the Customs Examination Station and made available to the merchant for retrieval and subsequent return. Until such release and availability, the containers remained under the control of the examination process and were not practically available for return by the consignee.

The correct chronology, as evidenced by the supporting documents already provided to CMA CGM, is set out below:

MBL No. CAD0856323 – CMA Invoice No. NAIC1879457

Container No. BMOU6712452

- **Customs Hold Applied:** 14-Mar-2026
- **Customs Hold Released:** 22-Apr-2026
- **Gate-Out Full:** 08-Apr-2026 (Container moved to Port Liberty CES for Customs Examination)
- **Container Available for Pickup:** 29-Apr-2026
- **Empty Container Returned:** 04-May-2026

Container No. TEMU6608436

- **Customs Hold Applied:** 14-Mar-2026
- **Customs Hold Released:** 22-Apr-2026

- **Gate-Out Full:** 08-Apr-2026 (Container moved to Port Liberty CES for Customs Examination)
- **Container Available for Pickup:** 24-Apr-2026
- **Empty Container Returned:** 01-May-2026

MBL No. CAD0856129 – CMA Invoice No. NAIC1873057

Container No. TCNU6996440

- **Customs Hold Applied:** 14-Mar-2026
- **Customs Hold Released:** 22-Apr-2026
- **Gate-Out Full:** 08-Apr-2026 (Container moved to Port Liberty CES for Customs Examination)
- **Container Available for Pickup:** 24-Apr-2026
- **Empty Container Returned:** 29-Apr-2026

Container No. CMAU8547004

- **Customs Hold Applied:** 14-Mar-2026
- **Customs Hold Released:** 22-Apr-2026
- **Gate-Out Full:** 08-Apr-2026 (Container moved to Port Liberty CES for Customs Examination)
- **Container Available for Pickup:** 29-Apr-2026
- **Empty Container Returned:** 29-Apr-2026

In view of the foregoing, we respectfully submit that CMA CGM's assertion that the containers were available to the merchant upon release of customs hold is factually incorrect and fails to account for the actual period during which the containers remained within the Customs Examination Station and unavailable for commercial use, retrieval or return.

We further note that your response selectively addresses only certain containers while failing to substantively address the entirety of the claims raised under Detention Invoice Nos. NAIC1879457 and NAIC1873057, despite the comprehensive documentation already provided. The response also does not identify any specific tariff provision, bill of lading clause, FMC authority, contractual term or legal basis authorizing the imposition of detention charges for periods during which the containers remained unavailable to the merchant due to an ongoing government-mandated examination process.

Accordingly, we request that CMA CGM undertake a fresh and comprehensive review of this matter based upon the documentary evidence supplied rather than on generalized system entries which do not reflect the actual availability status of the containers.

Nothing contained herein shall be construed as an admission of liability. India Connection expressly reserves all rights, claims, remedies and contentions available to it under applicable law, including but not limited to rights before the Federal Maritime Commission and any other competent authority, tribunal or forum.

We once again request your reconsideration of the disputed detention charges and look forward to receiving your substantive response.

Best Regards
S. N. Jha

The India Connection

jha@indiaconnection.in

From: jha@indiaconnection.in
Sent: 30 June 2026 12:28
To: 'CCA - Disputes'; 'salessupport@eglmartime.com'; 'vineet@pridel.com';
'pankajmishra@pridel.com'; 'amitchaturvedi@kklogistics.net.in'
Cc: 'ops2@indiaconnection.in'; 'sam@indiaconnection.com';
'asheesh@indiaconnection.com'; 'custsvc@eglmartime.com';
'jepstein@wnepstein.com'; 'Sanjeev'
Subject: Bill of Lading No. CAD0856129, Detention Invoice No. NAIC1873057, Master Bill of
Lading No. CAD0856323, Detention Invoice No. NAIC1879457 final representation
seeking waiver of detention charges
Attachments: 76052- CMA Detention Invoice NAIC1879457.pdf; 76053- CMA INVOICE
NAIC1873057.pdf; CNTR # BMOU6712452 TRACKING.pdf; CNTR # CMAU8547004
TRACKING.pdf; CNTR # TCNU6996440 TRACKING.pdf; CNTR # TEMU6608436
TRACKING.pdf; Custom Exam Notice CMDUCAD0856129 with dates events Portal
PDF.pdf; Custom Exam Notice CMDUCAD0856323 with Dates events Portal PDF.pdf;
Port Liberty CES BMOU6712452.pdf; Port Liberty CES CMAU8547004.pdf; PORT
LIBERTY CES REPLY 4-15-26.pdf; Port Liberty CES TCNU6996440.pdf; Port Liberty
CES TEMU6608436.pdf; 10595 ICON INTERNATIONAL.pdf; 10583 EXOTIC INDIA.pdf;
FEDERAL MARITIME COMMISSION.pdf

WITHOUT PREJUDICE

To,

CMA CGM (America) LLC.
Eagle Maritime Inc.
Pridel Logistics
KK Logistics

Dear Sirs,

We write this representation in continuation of our earlier correspondence exchanged with your respective offices concerning the above-captioned detention invoices and more particularly our detailed communications addressed to CMA CGM disputing the detention charges and seeking their waiver. We have carefully considered the responses received thus far and have also undertaken a comprehensive review of the contractual documentation, booking instructions, Bills of Lading, container movement records, Port Liberty CES records, NetCHB Transmission Reports generated by the U.S. Customs and Border Protection, applicable provisions of the Shipping Act of 1984, the Ocean Shipping Reform Act, 2022, the regulations framed by the Federal Maritime Commission (hereinafter referred to as the "FMC"), together with the judicial and administrative principles governing the levy of detention charges in the United States. Having undertaken such review, we consider it necessary to place on record the complete factual matrix and legal position for your reconsideration before this matter is constrained to be placed before the Federal Maritime Commission for adjudication.

1. That at the very outset, we wish to reiterate that India Connection has at no point disputed the commercial utility or legal validity of detention charges as a concept. We fully appreciate that detention and demurrage constitute internationally accepted commercial mechanisms intended to facilitate efficient utilization of shipping equipment, promote freight fluidity and encourage timely movement of containers within the international supply chain. Our grievance is not directed against the existence of detention charges but against their application in the peculiar facts and circumstances of the present shipments, where the containers remained beyond our commercial control owing to a mandatory examination initiated and conducted by the U.S. Customs and Border Protection ("CBP"), without any omission, delay, negligence, non-compliance or other extenuating circumstance attributable to us. It is this factual distinction which, in our respectful submission, has not been appropriately appreciated while rejecting our earlier request for waiver.

2. That before adverting to the legal aspects, it is necessary to appreciate the contractual and commercial framework under which the subject shipments were undertaken. The bookings for the shipments were initially placed through our long-standing logistics service provider, K.K. Logistics, who, in turn, arranged the bookings through Pridel Logistics. Pridel thereafter procured the shipping services through Eagle Maritime Inc., which ultimately arranged transportation with CMA CGM as the ocean carrier. It is only because the detention invoices ultimately issued by CMA CGM were transmitted downstream through Eagle Maritime Inc. and Pridel and eventually demanded from us that we have been constrained to address this comprehensive representation jointly to all entities involved in the transaction so that the matter may be examined holistically and resolved without unnecessary multiplicity of proceedings.
3. That the commercial understanding governing these shipments assumes considerable significance. At the time of placing the bookings through K.K. Logistics, we specifically communicated our operational requirement that the consignee should receive the customary free period after the containers became available for collection at destination and that, after physical pickup of the loaded containers, a further detention-free period of not less than Ten working days should be available for unloading the cargo and returning the empty equipment. Such requirement was neither unusual nor extraordinary. On the contrary, it reflected the settled commercial understanding consistently followed between the parties in earlier transactions and was entirely in consonance with the prevailing industry practice under merchant haulage shipments.
4. That at no stage were we informed that the detention-free period would commence irrespective of whether the containers had actually become commercially accessible to the consignee or notwithstanding the fact that they remained under the exclusive custody and control of the Customs Examination Station pursuant to a government-mandated examination. Had such an unusual deviation from the established commercial understanding been disclosed at the time of booking, the commercial implications thereof would necessarily have been evaluated before acceptance of the booking itself.
5. That It is equally significant that the House Bills of Lading and other transportation documents supplied to us through Pridel did not contain any express stipulation providing that detention-free time would automatically commence merely upon discharge of the containers at the destination port, irrespective of whether the containers had actually become available for delivery to the consignee. Equally absent is any contractual stipulation expressly providing that the consignee would continue to incur detention charges during the subsistence of an active customs examination when the containers remained beyond its practical possession, access and commercial control. In commercial transactions of the present nature, particularly where bookings are routed through intermediaries and the consignee is not in direct contractual privity with the ocean carrier, such material commercial conditions cannot reasonably be presumed or implied to the detriment of the consignee in the absence of a clear contractual stipulation or a mutually understood commercial practice.
6. That the chronology of the subject shipments further demonstrates that India Connection discharged all obligations expected of a prudent shipper and consignee. Under Master Bill of Lading No. CAD0856129, covering Container Nos. TCNU6996440 and CMAU8547004, the booking request was placed on 03 February 2026, the booking was confirmed on 06 February 2026, the containers were dispatched on 10 February 2026, reached Mundra Port, India on 13 February 2026, and sailed on 18 February 2026.
7. That a Customs Hold was thereafter applied on 14 March 2026. The containers arrived at the destination on 05 April 2026 and were immediately moved to the Customs Examination Station on 08 April 2026 pursuant to the examination process initiated by the U.S. Customs authorities. The Customs Hold was released on 22 April 2026, whereafter the containers became available for pickup on 24 April 2026. Both containers were returned to the port on 29 April 2026, and the detention invoice was subsequently raised only on 06 May 2026.
8. That likewise, under Master Bill of Lading No. CAD0856323, covering Container Nos. BMOU6712452 and TEMU6608436, the booking request was placed on 07 February 2026, the booking was received on the same date, the containers were dispatched on 11 February 2026, reached Mundra Port on 14 February 2026, and sailed on 18 February 2026. A Customs Hold was similarly imposed on 14 March 2026. Upon arrival at destination on 05 April 2026, the containers were immediately transferred on 08 April 2026 to the Customs Examination Station for examination by the competent authorities. As per the records available with us, the Customs Hold was thereafter released on 24 April 2024. Following completion of the examination process, Container No. TEMU6608436 was returned to the port on 01 May 2026, while Container No. BMOU6712452 was returned on 04 May 2026. The detention invoice in respect thereof was issued on 06 May 2026.

9. That the aforesaid chronology clearly establishes one undisputed factual position. The delay complained of did not arise because of any failure on the part of India Connection to collect the containers after they had become commercially available, nor because of any avoidable delay in unloading the cargo or returning the equipment after taking delivery. The delay arose because the containers had been selected by the U.S. Customs and Border Protection for examination on a random pick-and-inspect basis and remained within the Customs Examination Station for completion of the mandated inspection process.

10. That throughout this period, the containers were not available for commercial use, retrieval or return by the consignee. We had neither any authority nor any practical ability to accelerate, interfere with or influence the Customs examination process. The examination was entirely under the control of the competent governmental authorities and proceeded according to their own operational schedules. More importantly, upon completion of the examination and once the containers became available for collection, we acted with utmost promptitude in arranging transportation, taking delivery and returning the empty containers within the shortest commercially practicable time. Such conduct, in our respectful submission, demonstrates complete diligence and commercial bona-fides on our part.

11. That It is also pertinent to note that the Customs examination ultimately concluded without any allegation of misdeclaration, concealment, prohibited goods, regulatory violation or any other contravention being attributed to either the consignor or India Connection. All statutory compliances, including filing of the Advance Manifest System (AMS), Importer Security Filing (ISF) and all other documentation required under applicable U.S. customs regulations, had been duly completed. The selection of the subject containers for examination was thus purely an administrative exercise undertaken by the Customs authorities in the ordinary discharge of their statutory functions and not one occasioned by any fault, omission or default attributable to the shipper, consignee or any entity acting on our behalf. It is in this factual backdrop that the reasonableness of the impugned detention charges requires to be examined.

12. That before proceeding further, it is necessary to appreciate the statutory philosophy governing the levy of demurrage and detention charges under the laws applicable to ocean transportation in the United States. The Shipping Act of 1984, as amended by the Ocean Shipping Reform Act, 2022, read with the regulations and interpretative guidance issued by the FMC, recognizes that demurrage and detention charges are commercial instruments intended to facilitate the efficient utilization of shipping equipment and the smooth movement of cargo through the maritime supply chain. They are neither conceived nor intended to operate as punitive measures or as an independent source of revenue for carriers. Their legitimacy is therefore intrinsically linked to the commercial objective sought to be achieved by their imposition i.e. freight fluidity.

13. That in this regard, particular reference deserves to be made to Section 41102(c) of 46 of the United States Code, which mandates that every common carrier, marine terminal operator and ocean transportation intermediary shall establish, observe and enforce only such regulations and practices relating to the receiving, handling, storing and delivering of property as are just and reasonable. The statutory obligation cast upon the carrier is, therefore, not confined merely to framing tariff provisions or contractual conditions but extends equally to ensuring that the manner in which such provisions are implemented in a given factual situation satisfies the overarching requirement of reasonableness contemplated under the Shipping Act.

14. That while issuing the Interpretative Rule on Demurrage and Detention under the Shipping Act, the FMC unequivocally clarified that the reasonableness of detention and demurrage charges is the "Incentive Principle." The FMC has in a catena of pronouncements also observed that detention and demurrage are intended primarily to function as financial incentives to promote freight fluidity and encourage the timely movement of cargo and equipment through the transportation chain and must be tested against the fundamental question as to whether the charge, in the facts of the particular case, actually served its intended commercial purpose.

15. That historically, detention and demurrage have never been intended to operate as penalties imposed merely because a specified number of days has elapsed, rather the rationale lies in encouraging prompt pickup of cargo after discharge, expeditious unloading of containers and timely return of shipping equipment so that the same may be reutilized within the logistics chain. However, where a merchant, despite exercising due diligence and acting in good faith, is rendered incapable of retrieving or returning the equipment owing to circumstances entirely beyond its control, the very foundation upon which detention charges are justified stands substantially diluted. In such circumstances, the levy of detention ceases to function as an incentive and assumes the character of a charge imposed notwithstanding the complete absence of any ability on the part of the consignee and/or shipper to influence or avoid its accrual.

16. That it is respectfully submitted that the factual matrix of the present matter falls squarely within the aforesaid principle. Throughout the period during which the subject containers remained under Customs examination; India Connection neither possessed physical custody of the containers nor exercised any commercial control over them. The containers remained under the exclusive supervision of the Customs Examination Station pursuant to a mandatory governmental process. Their retrieval, movement and eventual release were entirely dependent upon the completion of examination by the competent Customs authorities. During such period, no act or omission on our part could have expedited the examination process, secured an earlier release of the containers or enabled their return to the carrier. Consequently, the levy of detention charges during such period could not possibly have incentivized any conduct on our part because there existed no conduct capable of being influenced.

17. That the FMC has several times reiterated that the reasonableness of detention charges, the relevant inquiry is not merely whether the containers technically remained outside the carrier's possession but whether the merchant had a realistic and meaningful opportunity to comply with the obligation of returning the equipment. The FMC has consistently emphasized that where circumstances beyond the merchant's control effectively prevent such compliance, the continued imposition of detention charges requires scrutiny under the statutory standard of reasonableness embodied in Section 41102(c) of 46 of United States Code.

18. That the FMC in “TCW, Inc. v. Evergreen Shipping Agency (America) Corp.”, has held that detention charges imposed could not reasonably be justified because the merchant was deprived of any practical opportunity to return the equipment due to terminal closure. Since no amount of diligence or willingness on the part of the consignee could have resulted in the return of the containers during the closure of the terminal, the detention charges ceased to perform their intended commercial purpose and consequently failed the test of reasonableness envisaged under the legal framework.

19. That although the factual circumstances in the present case arise from a random Customs examination rather than a terminal closure, the legal principle governing both situations is substantially identical. In each case, the consignee is deprived of effective possession, access and commercial control over the containers owing to circumstances beyond its control without any extenuating factors on the part of the shipper. Whether such inability arises because the terminal refuses to accept return of containers or because the containers remain under the custody of the Customs Examination Station pursuant to a governmental examination process, the consequence remains the same, namely that the consignee is rendered incapable of complying with the obligation of returning the equipment despite being willing to do so. Under such circumstances, the continued accrual of detention charges no longer incentivizes cargo movement or equipment return and therefore does not meet the standard of reasonableness contemplated by law.

20. That it further deserves specific mention that immediately upon the subject containers being released from the Customs Examination process and becoming commercially accessible, actions with utmost expedition and without any avoidable delay in taking delivery of the containers were undertaken and further unloading the cargo and returning the empty containers to the designated terminal was performed. The documentary record itself unequivocally establishes that the containers were not retained for any unreasonable period after they became available for pickup and were returned within a matter of days. Such prompt action on our part completely negates any suggestion that the subject containers were deliberately retained, unnecessarily detained or utilized beyond the period reasonably required for unloading and return. On the contrary, our conduct throughout the transaction demonstrates our bona-fide intention to comply with all obligations pertaining to the timely return of the containers and conclusively establishes that any delay occurring prior thereto was solely attributable to the mandatory Customs Examination process during which the containers remained beyond our possession, custody and commercial control. Had the containers been made available earlier, they would have been returned correspondingly earlier. The undisputed fact that the containers were returned almost immediately upon restoration to exercise control over them itself strongly suggests that the detention charges did not and could not serve their intended purpose as an incentive for expeditious return of equipment, there being no conduct that required incentivization during the period in question.

21. That in view of the foregoing facts and circumstances, it is respectfully submitted that the detention charges forming the subject matter of Detention Invoice Nos. NAIC1873057 and NAIC1879457 merit a fresh and holistic reconsideration. The present case is not one where the containers were deliberately retained or where any delay is attributable to the consignee or shipper. On the contrary, the documentary record clearly demonstrates that the containers remained beyond our possession and commercial control owing to a mandatory Customs examination process and, immediately upon becoming commercially accessible, were collected, unloaded and returned with

utmost expedition. In these circumstances, we respectfully submit that the continued levy of detention charges does not align with the commercial objective for which such charges are intended and therefore deserves to be reconsidered in the peculiar facts of the present case.

22. That we also respectfully request that the matter be viewed in the broader perspective of the longstanding commercial relationship shared between the parties. India Connection has always valued its business association with CMA CGM and the intermediaries involved in the present shipments and has consistently conducted its business dealings in a fair, transparent and commercially responsible manner. It is for this very reason that, despite our firm belief that the present detention charges deserve to be waived, we have repeatedly sought to resolve the issue through dialogue and constructive engagement rather than by resorting to formal legal proceedings at the first instance.

23. That we, therefore, once again earnestly request CMA CGM, Eagle Maritime Inc., Pridel Logistics and K.K. Logistics to collectively re-examine the factual position and exercise their commercial discretion in granting a complete waiver of the detention charges raised under the aforesaid invoices. We are confident that a fair consideration of the documentary evidence, the applicable legal principles and the overall circumstances of the shipments would justify such a course of action, which would not only resolve the present dispute amicably but would also reinforce the spirit of mutual trust and cooperation that has characterized the business relationship between the parties over the years.

24. That this representation is being made in the genuine hope of achieving an amicable and commercially pragmatic resolution without the necessity of involving any regulatory authority. India Connection remains keen to preserve its longstanding business relationship with all concerned parties and sincerely believes that disputes of the present nature are best resolved through mutual understanding and a fair appreciation of the underlying facts. We, therefore, request that the present representation be considered in its true spirit and that the detention charges be waived in their entirety.

25. That however, should the present representation not receive favourable consideration, or should the matter remain unresolved despite the material placed on record, India Connection shall, with utmost respect and reluctance, be left with no other efficacious alternative but to seek such remedies as may be available before the Federal Maritime Commission or any other competent authority having jurisdiction. Such recourse, if necessitated, would be pursued solely for obtaining an impartial adjudication of the issues involved and shall not be construed as detracting from our continued desire to maintain cordial and mutually beneficial commercial relations with all concerned.

26. That we trust the present representation shall receive your earnest consideration and look forward to your favourable response at the earliest so that the matter may be brought to a mutually satisfactory conclusion, thereby enabling the parties to continue their longstanding business association in the same spirit of cooperation, confidence and mutual goodwill that has existed between them.

Best Regards

S. N. Jha
The India Connection

From: CCA - Disputes <usa.disputes@usa.cma-cgm.com>

Sent: 23 June 2026 22:29

To: vineet@pridel.com

Cc: jha@indiaconnection.in; pankajmishra@pridel.com; amitchaturvedi@kklogistics.net.in; ops2@indiaconnection.in; sam@indiaconnection.com; asheesh@indiaconnection.com; custsvc@eglmartime.com; jepstein@wnepstein.com; salessupport@eglmartime.com

Subject: RE: FW: Case #381308076- RE: FW: Urgent Request for Waiver on Detention charges- MBL# CAD0856323 & CAD0856129 / Detention charges Invoice # NAIC1879457 and NAIC1873057

Hello Vineet,

Thank you for your detailed communication and for sharing the supporting information regarding the above-mentioned invoices. We appreciate the time and effort you have taken to present your concerns.

ops2@indiaconnection.in

From: Vineet Jain II Pridel Jaipur <vineet@pridel.com>
Sent: 06 July 2026 15:37
To: custsvc@eglmartime.com; 'CCA - Disputes'; 'TORRES Katherine'; 'HIDALGO Francisco'; 'MOSES Valerie'
Cc: ops2@indiaconnection.in; sam@indiaconnection.com; asheesh@indiaconnection.com; jepstein@wnepstein.com; 'Sanjeev'; 'Naved Khan'; pankajmishra@pridel.com; amitchaturvedi@kklogistics.net.in; 'Rajiv Dixit'; 'Swapnil Gupta'; jha@indiaconnection.in; 'MILAN || PRIDEL'
Subject: RE: Bill of Lading No. CAD0856129, Detention Invoice No. NAIC1873057, Master Bill of Lading No. CAD0856323, Detention Invoice No. NAIC1879457 final representation seeking waiver of detention charges
Attachments: 76052- CMA Detention Invoice NAIC1879457.pdf; 76053- CMA INVOICE NAIC1873057.pdf; CNTR # BMOU6712452 TRACKING.PDF; CNTR # CMAU8547004 TRACKING.PDF; CNTR # TCNU6996440 TRACKING.PDF; CNTR # TEMU6608436 TRACKING.PDF; Custom Exam Notice CMDUCAD0856129 with dates events Portal PDF.PDF; Custom Exam Notice CMDUCAD0856323 with Dates events Portal PDF.PDF; Port Liberty CES BMOU6712452.pdf; Port Liberty CES CMAU8547004.pdf; PORT LIBERTY CES REPLY 4-15-26.pdf; Port Liberty CES TCNU6996440.pdf; Port Liberty CES TEMU6608436.pdf; 10595 ICON INTERNATIONAL.PDF; 10583 EXOTIC INDIA.PDF; FEDERAL MARITIME COMMISSION.PDF

To,

CMA CGM (America) LLC.

Awaited your response on below mail urgently .

Regards,

Vineet Jain | Branch Manager – Business Growth | Pridel Private Limited | 107, Adarsh Plaza, Khalsa Koti Circle, Jaipur - 302001

Tel: +91 141 4055302 / 4032602 | Mob: +91 9829833777 | +91 7303268001

E. vineet@pridel.com | E jaipur@pridel.com W www.pridel.com**Pridel - Forward Together**

With a footprint of 22 offices across India and UAE along with a network of partners across the globe, We provide seamless end to end supply chain solutions tailored to specific requirements. Global standard solutions coupled with local approach helps us to move your shipments smoothly across borders.

Please feel free to reach out to us at info@pridel.com for your valuable feedback, escalation and appreciations

From: Devki Bhatt [mailto:custsvc@eglmartime.com]**Sent:** 30 June 2026 20:58

To: CCA - Disputes <usa.disputes@usa.cma-cgm.com>; 'TORRES Katherine' <HER.KTORRES1@cma-cgm.com>; 'HIDALGO Francisco' <HER.FHIDALGO@cma-cgm.com>; 'MOSES Valerie' <usa.vmoses@cma-cgm.com>

Cc: ops2@indiaconnection.in; sam@indiaconnection.com; asheesh@indiaconnection.com; jepstein@wnepstein.com; 'Sanjeev' <sanjeev@indiaconnection.in>; 'Naved Khan' <salessupport@eglmartime.com>; vineet@pridel.com; pankajmishra@pridel.com; amitchaturvedi@kklogistics.net.in; 'Rajiv Dixit' <rajiv@eglmartime.com>; 'Swapnil Gupta' <swapnil@pridel.com>;

jha@indiaconnection.in

From: GUPTA Shivam <DHI.SGUPTA@cma-cgm.com>
Sent: 17 July 2026 11:22
To: milan@pridel.com
Cc: jha@indiaconnection.in; sanjeev@indiaconnection.in; 'Aaryav';
 pankajmishra@pridel.com; 'Kuldeep Bahadur'
Subject: RE: REQUEST FOR WAIVER OF DETENTION CHARGES // CONTAINER UNDER
 CUSTOM HOLD // MBL - CAD0856129, CAD0856323 // POD - NEW YORK

Dear Milan,

We have check subject case , No scope for the waiver regarding subject shipment : CAD0856129, CAD0856323 under custom hold.

Detention charges belong to destination office , kindly settle accordingly.

Thanks N Regards,



Shivam GUPTA
Assistant Manager – Sales

CMA CGM Agencies (India) Pvt Ltd
 ISO 9001:2015 Certified Organization

Direct Line: +91 120 6951021

Mobile No.: +91 7838880573

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 BPTP Capital City, Near : Okhla Bird
 Sanctuary Metro Station
 Sector- 94, Noida – 201301, Uttar Pradesh.

Email : Dhi.sgupta@cma-cgm.com
 Business website: www.cma-cgm.com
 Group website: www.cmacgm-group.com

Business website: www.cma-cgm.com
 Group website: www.cmacgm-group.com



----- Original Message -----

From: Devki Bhatt [custsvc@eglmartime.com]

Sent: 17/07/2026 23:17

To: usa.disputes@usa.cma-cgm.com

Cc: her.ktorres1@cma-cgm.com; her.fhidalgo@cma-cgm.com;

usa.vmoses@cma-cgm.com; ops2@indiaconnection.in;

sam@indiaconnection.com; asheesh@indiaconnection.com;

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salesupport@eglmartime.com; pankajmishra@pridel.com;

amitchaturvedi@kklogistics.net.in; rajiv@eglmartime.com; swapnil@pridel.com;

jha@indiaconnection.in; milan@pridel.com

Subject: FW: Bill of Lading No. CAD0856129, Detention Invoice No.

NAIC1873057, Master Bill of Lading No. CAD0856323, Detention Invoice No.

NAIC1879457 final representation seeking waiver of detention charges

Dear CMA CGM Dispute Team,

Assist us on below email urgently, the issue is pending since long.

Kindly Re-check emails communications sent by Consignee regarding Detention charges along with attached documents and advise us on complete waiver/ discount on shared invoices.

We are getting immediate payment reminders from Collection team.

Looking forward for your earliest reply, thank you.

With best regards,

Devki Bhatt

D: + 1 201 373 2194

P: + 1 201 627 0033 (Ext. 104)

F: + 1 201 630 0068

D: + 91 9619628598 (WhatsApp)

Skype: live: c27ecbc180b9de6a

Eagle Maritime of America Inc.

1 Newark Street #21 Hoboken NJ 07030

FMC | WCA | CT-PAT | CNS-IATA

From: CCA - Disputes <usa.disputes@cma-cgm.com>

Sent: 20 July 2026 23:42

EXHIBIT-CC

To: custsvc@eglmartime.com

Cc: her.ktorres1@cma-cgm.com; pankajmishra@pridel.com; milan@pridel.com; her.fhidalgo@cma-cgm.com; asheesh@indiaconnection.com; rajiv@eglmartime.com; swapnil@pridel.com; jepstein@wnepstein.com; salessupport@eglmartime.com; jha@indiaconnection.in; ops2@indiaconnection.in; amitchaturvedi@kklogistics.net.in; sam@indiaconnection.com; usa.vmoses@cma-cgm.com; sanjeev@indiaconnection.in

Subject: RE: FW: Bill of Lading No. CAD0856129, Detention Invoice No. NAIC1873057, Master Bill of Lading No. CAD0856323, Detention Invoice No. NAIC1879457 final representation seeking waiver of detention charges

Dear Devki,

Thank you for your patience while we completed our review of your dispute, and for sharing the additional documents and detailed explanation in support of your request.

We appreciate the time and effort taken to provide the supporting information, and we fully understand the circumstances you have described regarding the Customs examination.

After carefully reviewing the documents and the information provided, we regret to inform you that we are unable to approve the requested waiver of the detention charges.

Please note that Customs inspections and examination holds are outside the control of CMA CGM. Such examinations are performed solely at the discretion of the Customs authorities and the terminal, and neither the timing nor the duration of these inspections can be influenced by the carrier.

We understand that all required documentation was ultimately submitted and cleared. However, the occurrence and duration of a Customs hold or examination remain outside CMA CGM's operational control. As per our applicable tariff and terms of carriage, detention charges continue to accrue during this period, as the equipment remains unavailable for operational use until it is returned.

We sincerely appreciate the challenges these situations may create and understand the inconvenience caused. However, based on our review and the applicable terms and conditions, we are unable to grant a waiver on the detention invoices.

Accordingly, the invoices remain valid and payable.

We value your business and appreciate your understanding in this matter. Should you require any further clarification or wish to discuss this matter further, we kindly encourage you to reach out to your Sales Representative, who will be pleased to assist you and discuss any available options. Should you have any additional questions regarding this decision, please do not hesitate to contact us.

Kind regards,



Deepak NANDGAONKAR
Dispute Analyst

CMA CGM (AMERICA) LLC